

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C.

Docket No. 25-15

APPENDIX PREPARED BY

RESPONDENT WALLENIUS WILHELMSEN OCEAN AS

A Public Filing

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EXHIBIT 1

BOOKING CONFIRMATION

Subject to Terms and Conditions of the Carrier's Bill of Lading or Sea Waybill

Booking No. : USSAV2348017
Quote No. :
Carrier : Wallenius Wilhelmsen Ocean AS
Company : WORLDWIDE NEXUS LOGISTICS
Attention of : JEAN LOPEZ

Thank you for your booking. We are pleased to confirm the details as follows:

Vessel	: MORNING LADY	Voyage	: EC311-MLY	
Place of Receipt (POR)	:			
Port of Loading (POL)	: GALVESTON, TX	Estimated Time of Arrival (ETA)	: 20/12/2023	Estimated Time of Departure (ETD) : 20/12/2023
Port of Discharge (POD)	: SAN ANTONIO	Estimated Time of Arrival (ETA)	: 12/01/2024	
Place of Delivery (PFD)	:			

ETA/ETD of POL/POD is subject to change and Carrier has the right to tranship cargo. Please also closely monitor the vessel's schedule on our website: <https://www.walleniuswilhelmsen.com/schedules>

Booking Items

Item	Qty	Cargo	Dims (L*W*H)	Weight (KGS)	CBM (M3)	Ocean Freight	Rate Basis
1	1	2021 AXIS T22 ON ITS TRAILER (BOAT ON TRAILER)	7.92 * 2.32 * 1.86	2,222.625	34.099	64.00 USD	RT

Total	1			2,222.625	34.099		
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- Offer is subject to the terms of Carrier's Bill of Lading or Sea Waybill, any applicable service contract, the prior freight quotation, service, space, equipment availability & subject suitable vessel at time of shipment.
- Ocean freight (if indicated) may not include surcharge fees (examples: bunker or canal fees) refer to tariff or service agreement (if applicable)
- Delivery at POR/POL or receipt at POD/PFD is subject to all local rules and regulations for access to cargo, as well as all local charges which may be applied in addition to the Ocean Freight.

Delivery Address : Truck Delivery Address/Gate Entrance - Goods receipt point: PORTS OF AMERICA FACILITY
 PIER39, 3927 Wharf Road Pier 39 Galveston, TX 77550
Tel. No. / Fax No. : 409-763-1500
Email : galvestonops@portsamerica.com / glsops@walwil.com
Cargo cut-off : * Cut off for titled cargo = 3 full working days prior to vessel ETA
 * Cut off for non titled cargo = 2 full working days prior to vessel ETA
Receiving Times : Monday through Friday 0800 to 1130 and 1300 to 1600
Important Information : BREAKBULK CARGO WEIGHING 30000 TO 58000# OR IS MORE THAN 8 FEET WIDE WILL REQUIRE THE USE OF 1 X CRANE.
 BREAKBULK CARGO WEIGHING 58001 TO 180000# WILL REQUIRE THE USE OF 2 X CRANES.
 FOR CRANE APPOINTMENTS PLEASE SEND AN EMAIL TO GALVESTONOPS@PORTSAMERICA.COM. IF YOU REQUIRE FURTHER INFORMATION PLEASE CALL AT 409-762-8290

Booking Remarks:**Terms & Conditions:****1. General**

The information given on the booking confirmation is in accordance with the details given by the shipper at the time of booking. If any of these details are incorrect or changed, the information and Ocean Freight (if indicated) on this booking confirmation is subject to change.

Booking is subject to the Terms and Conditions of the Carrier's Bill of Lading or Sea Waybill, applicable tariff, or any applicable service contract. For details, please visit at <https://www.walleniuswilhelmsen.com/ocean-support/bill-of-lading-and-seaway-bill-terms-conditions>.

It is the responsibility of the customer to declare if cargo is classified by the IMO as Dangerous Goods as per the IMDG code by submitting completed documentation to Carrier within sufficient time of shipment. Without strict application of these requirements, the master of the relevant vessel reserves the right to refuse shipment of the cargo. Failure to declare Cargo as dangerous at the time of this booking will void any information, quotes or commitments made by Carrier and may subject this cargo to changes in the indicated Ocean Freight (if indicated). In case of Dangerous Goods, it is the customer's responsibility to always have visible IMO stickers attached to the cargo, provide all IMO required documentation and comply with all applicable international and local regulations.

Expiration of this Booking Confirmation: If cargo is not presented or available for shipment at the POR/POL in the date indicated under the above remarks or local rules and regulations, this Booking Confirmation will be void and of no further effect.

2. Cargo Condition

Cargo is to be presented in all respects safe and ready for ocean shipment (also refer to section 3 below) including free of any oil, soil, dust, grease, or other contamination. This includes all surfaces both internal and external (e.g. machinery, cabs, hoses, ladders, tires, wheel arches etc.). Should the cargo be received in a dirty/contaminated condition, Carrier has the right not to accept cargo for loading until cleaning has taken place which is at the cost and responsibility of the customer. For more details, please refer to our Clean Cargo Guide at: <https://www.walleniuswilhelmsen.com/storage/downloads/clean-cargo-guide.pdf>.

Cargo must be fully drivable/towable and where possible include an 'Operation Manual Book' which shows how to start, drive/stop the unit. Any cost to facilitate starting, driving, or stopping the unit shall be borne by the customer, this includes but is not limited to, delays to vessel and discharge of cargo.

Breakbulk cargo must be presented in a forkliftable manner or in a state ready to carry out a safe crane lift. If the cargo is presented to the wharf in a non-forkliftable condition after being quoted at the forkliftable rate, the original rate quote will no longer be valid. All additional crane cost and ocean freight charges will be for the account of customer.

AFV (Alternative Fuel Vehicles) can be accepted with specific requirements according Cargo Handling instructions. Shipper is responsible for ensuring that the cargo is safe for shipment.

All used vehicles will have their 12/24-volt battery disconnected after the vehicle has been loaded onboard the vessel.

Carrier does not accept the loading of used BEV (Battery Electric Vehicles) onboard WalWil vessels until further notice.

Carrier does not accept personal effects and will not be responsible for personal effects or any other goods shipped within automobiles, motorhomes, or any other type of cargo, unless Carrier agrees in writing to accept such additional goods and extra freight is paid. Carrier reserves the right to refuse to load any cargo containing personal effects.

3. Cargo Packing & Markings

All cargo must be marked with the following: Vessel/Voyage, Pol/Pod (incl. any transit port), Consignee, Length, Width, Height & Weight, Centre of gravity (when applicable), Cargo ID and the Booking number.

Packed cargo must be secured inside the packaging so that the cargo is safe for ocean transport and under no circumstances can move inside the packaging.

Break-bulk cargo must be adequately packaged for ocean shipment and forklift handling: proper inspection panels, lifting points and center of gravity clearly marked where applicable. In addition, Break-bulk cargo weighing 10 metric ton or more must have securing points directly connected to the unit itself and accessible for securing the unit to the vessel. The securing points must be clearly marked.

For more details, please refer to our Cargo Packaging Guide at: <https://www.walleniuswilhelmsen.com/storage/downloads/packing-guideline.pdf>

4. Equipment availability

Where cargo is to be loaded on Carrier's equipment, such equipment will, in general, be made available **7 days** prior to loading of ocean vessel. In case an earlier delivery is required, please contact the local Carrier office at port of load to confirm equipment availability. Earlier delivery will incur a daily charge for equipment usage until day 7 prior to loading. In case equipment is not available for the earlier delivery, double handling charges will be for account of the customer. In case equipment is released later than 7 days prior to loading, the double handling charges are for account of the carrier. Failure to clarify equipment availability may result in double handling charges, which would be for account of the customer.

After discharge, Carrier offers **3 days** free of demurrage. Should cargo remain after this time, equipment demurrage and stripping charges may apply, which will be for account of the customer. Please contact local Carrier office at port of discharge to confirm these charges and free time available upon cargo arrival.

5. BMSB

The proliferation of the Brown Marmorated Stink Bug (BMSB) is a growing international concern. Native to East Asia, the bug has now migrated to the US, Canada and Europe, where its ruin of crop harvests has had significant economic impact. Measures are being taken to prevent the BMSB from entering Australia, New Zealand, Papeete and Nouméa, where its impact on the ecosystem would be catastrophic. All products travelling to these destinations during stink bug season must undergo either a heat treatment or a stringent fumigation process. These measures eradicate any BMSBs hidden in products.

For more details, please refer to our BMSB Guides at:

<https://www.walleniuswilhelmsen.com/news-and-insights/highlighted-topics/brown-marmorated-stink-bugs> (including seasonal guidelines)

6. Sanctions

This booking and the carriage of any cargo is subject to and limited by all UN/US/EU/Norwegian/applicable country of the POR-POL-POD-PFD trade and financial sanctions ("Sanctions"). By booking or delivering cargo to Carrier, customer represents and warrants: (a) it is acting in compliance with the Sanctions; (b) is not exposing Carrier, its affiliated companies, vessels or contractors to the risk of breaching the Sanctions; (c) it will ensure all cargo delivered to Carrier shall not be delivered or carried, indirectly or directly, for the benefit of any individual, entity or person listed as a sanctioned person under any of the Sanctions. In the event that, due to the customer failing in the above duties or additional Sanctions being imposed while the cargo is in Carrier's possession, Carrier is exposed to a risk of breach of the Sanctions, in addition to Carrier's other rights, it may terminate the carriage of the cargo and discharge the cargo at a place of its convenience, without liability or further responsibility. All costs and expenses shall be for the customer. Customer shall indemnify, defend and hold harmless Carrier against any and all damages, liabilities, penalties, fines, costs, losses, and expenses (including attorney fees) arising out of or related to any breach of the Sanctions.

7. Customs matters

Customer is required to adhere to customs formalities. Amongst others, Customer is required to include full details regarding safety & security in Customer's export related documents. Customer is responsible for submitting correct documentation to Customs and checking whether the documentation will be accepted and processed. Cargos' blockage as a result of customs matters remains Customer's responsibility.

Customer is required to check and adhere to any Customs regulation or other authority restrictions/license requirements in the port of discharge of Customer's shipment. Customer remains responsible for failing to comply in whatever way to the aforementioned.

8. Military Cargo

If not otherwise stated our quotation / booking is limited to commercial, non-military, not flag bound cargo.

Military cargo can be both vehicles and static cargo.

The classification of military cargo depends on the following characteristics: Weapon / ammunition; Military vehicles or Military / Paramilitary equipment of any kind; Owner of the cargo is a military organization; Shipper and/or the consignee is a military organization; and Physical appearance e.g. vehicle in camouflage color, shows military logo or other attributes.

Flag bound cargo are cargoes required to be carried by a vessel having the flag of a specific country.

Military and Flag bound cargoes need to be separately quoted/booked.

BOOKING CONFIRMATION

Subject to Terms and Conditions of the Carrier's Bill of Lading or Sea Waybill

Booking No. : USSAV2348173
Quote No. :
Carrier : Wallenius Wilhelmsen Ocean AS
Company : WORLDWIDE NEXUS LOGISTICS
Attention of : JEAN C. LOPEZ

Thank you for your booking. We are pleased to confirm the details as follows:

Vessel	: MORNING LADY	Voyage	: EC311-MLY	
Place of Receipt (POR)	:			
Port of Loading (POL)	: BRUNSWICK, GA	Estimated Time of Arrival (ETA)	: 15/12/2023	Estimated Time of Departure (ETD) : 15/12/2023
Port of Discharge (POD)	: SAN ANTONIO	Estimated Time of Arrival (ETA)	: 12/01/2024	
Place of Delivery (PFD)	:			

ETA/ETD of POL/POD is subject to change and Carrier has the right to tranship cargo. Please also closely monitor the vessel's schedule on our website: <https://www.walleniuswilhelmsen.com/schedules>

Booking Items

Item	Qty	Cargo	Dims (L*W*H)	Weight (KGS)	CBM (M3)	Ocean Freight	Rate Basis
1	1	USED BOAT ON TRAILER	7.23 * 2.30 * 2.01	1,500.000	33.424	84.00 USD	RT
2	1	USED BOAT ON TRAILER	8.38 * 2.70 * 2.64	2,100.000	59.733	84.00 USD	RT
Total		2		3,600.000	93.157		

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- Ocean freight (if indicated) may not include surcharge fees (examples: bunker or canal fees) refer to tariff or service agreement (if applicable)
- Delivery at POR/POL or receipt at POD/PFD is subject to all local rules and regulations for access to cargo, as well as all local charges which may be applied in addition to the Ocean Freight.

Delivery Address : Colonel's Island
 Atlantic Vehicle Processors (AVP)
 200 Joe Frank Harris Blvd.
 Brunswick, GA 31523

Tel. No. / Fax No. : Terminal Contacts:
 Phone: 912-267-6766
 Fax: 912-267-0356
 Rick.Detlefsen@walwil.com

Email : 2WAMAVPSSIMarineTerminal@walwil.com

Cargo cut-off : * Cut off for titled cargo = 3 full working days prior to vessel ETA
 * Cut off for non titled cargo = 2 full working days prior to vessel ETA

Receiving Times : Monday through Friday 8:00 A.M. - 4:00 P.M.

Cut Off Date:

2 Full Working Days Prior to Vessel Arrival

Important Information : ****APPOINTMENT REQUIRED FOR ALL CARGO REQUIRING CRANE LIFT AND ANY BOATS EXCEEDING 30' IN LENGTH.**

Crane hire is additional to THL. Please contact SSI terminal to confirm if your cargo will require a crane.

Tel: 912-267-6766

Email: : 2WAMAVPSSIMarineTerminal@walwil.com

In an effort to improve efficiency for motor carriers and to better serve our customers, AVP Marine will initiate a crane appointment process effective September 1, 2023

In order to deliver or pick up cargo requiring a crane lift please follow the below steps:

1) For imports, confirm cargo has all required releases, including customs, USDA and finance releases.

For exports assure that you have a valid booking number and that the sailing date is not more than 30 days out.

2) Send an email to 2WAMAVPSSIMarineTerminal@walwil.com with requested date and time of crane lift.

Requests are to be sent at least 24 hours in advance

3) AVP personnel will confirm availability of the requested date and time. If that time is not available, then the next available time will be suggested.

4) Once a crane appointment is approved by both AVP and shipper, you will receive an emailing confirming the date and time. Email subject line will say "Crane Appointment Confirmation"

5) 24-hour notice is required to cancel crane appointments.

If appointment is cancelled inside the 24-hour notice window or there is a no call no show additional charges may apply.

If the truck has not showed up by the scheduled crane lift start time it will be considered a no call no show and additional charges may apply.

Booking Remarks:

Terms & Conditions:

1. General

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Booking is subject to the Terms and Conditions of the Carrier's Bill of Lading or Sea Waybill, applicable tariff, or any applicable service contract. For details, please visit at <https://www.walleniuswilhelmsen.com/ocean-support/bill-of-lading-and-seaway-bill-terms-conditions>.

It is the responsibility of the customer to declare if cargo is classified by the IMO as Dangerous Goods as per the IMDG code by submitting completed documentation to Carrier within sufficient time of shipment. Without strict application of these requirements, the master of the relevant vessel reserves the right to refuse shipment of the cargo. Failure to declare Cargo as dangerous at the time of this booking will void any information, quotes or commitments made by Carrier and may subject this cargo to changes in the indicated Ocean Freight (if indicated). In case of Dangerous Goods, it is the customer's responsibility to always have visible IMO stickers attached to the cargo, provide all IMO required documentation and comply with all applicable international and local regulations.

Expiration of this Booking Confirmation: If cargo is not presented or available for shipment at the POR/POL in the date indicated under the above remarks or local rules and regulations, this Booking Confirmation will be void and of no further effect.

2. Cargo Condition

Cargo is to be presented in all respects safe and ready for ocean shipment (also refer to section 3 below) including free of any oil, soil, dust, grease, or other contamination. This includes all surfaces both internal and external (e.g. machinery, cabs, hoses, ladders, tires, wheel arches etc.). Should the cargo be received in a dirty/contaminated condition, Carrier has the right not to accept cargo for loading until cleaning has taken place which is at the cost and responsibility of the customer. For more details, please refer to our Clean Cargo Guide at: <https://www.walleniuswilhelmsen.com/storage/downloads/clean-cargo-guide.pdf>.

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Breakbulk cargo must be presented in a forkliftable manner or in a state ready to carry out a safe crane lift. If the cargo is presented to the wharf in a non-forkliftable condition after being quoted at the forkliftable rate, the original rate quote will no longer be valid. All additional crane cost and ocean freight charges will be for the account of customer.

AFV (Alternative Fuel Vehicles) can be accepted with specific requirements according Cargo Handling instructions. Shipper is responsible for ensuring that the cargo is safe for shipment.

All used vehicles will have their 12/24-volt battery disconnected after the vehicle has been loaded onboard the vessel.

Carrier does not accept the loading of used BEV (Battery Electric Vehicles) onboard WalWil vessels until further notice.

Carrier does not accept personal effects and will not be responsible for personal effects or any other goods shipped within automobiles, motorhomes, or any other type of cargo, unless Carrier agrees in writing to accept such additional goods and extra freight is paid. Carrier reserves the right to refuse to load any cargo containing personal effects.

3. Cargo Packing & Markings

All cargo must be marked with the following: Vessel/Voyage, Pol/Pod (incl. any transit port), Consignee, Length, Width, Height & Weight, Centre of gravity (when applicable), Cargo ID and the Booking number.

Packed cargo must be secured inside the packaging so that the cargo is safe for ocean transport and under no circumstances can move inside the packaging.

Break-bulk cargo must be adequately packaged for ocean shipment and forklift handling: proper inspection panels, lifting points and center of gravity clearly marked where applicable. In addition, Break-bulk cargo weighing 10 metric ton or more must have securing points directly connected to the unit itself and accessible for securing the unit to the vessel. The securing points must be clearly marked.

For more details, please refer to our Cargo Packaging Guide at: <https://www.walleniuswilhelmsen.com/storage/downloads/packing-guideline.pdf>

4. Equipment availability

Where cargo is to be loaded on Carrier's equipment, such equipment will, in general, be made available **7 days** prior to loading of ocean vessel. In case an earlier delivery is required, please contact the local Carrier office at port of load to confirm equipment availability. Earlier delivery will incur a daily charge for equipment usage until day 7 prior to loading. In case equipment is not available for the earlier delivery, double handling charges will be for account of the customer. In case equipment is released later than 7 days prior to loading, the double handling charges are for account of the carrier. Failure to clarify equipment availability may result in double handling charges, which would be for account of the customer.

After discharge, Carrier offers **3 days** free of demurrage. Should cargo remain after this time, equipment demurrage and stripping charges may apply, which will be for account of the customer. Please contact local Carrier office at port of discharge to confirm these charges and free time available upon cargo arrival.

5. BMSB

The proliferation of the Brown Marmorated Stink Bug (BMSB) is a growing international concern. Native to East Asia, the bug has now migrated to the US, Canada and Europe, where its ruin of crop harvests has had significant economic impact. Measures are being taken to prevent the BMSB from entering Australia, New Zealand, Papeete and Nouméa, where its impact on the ecosystem would be catastrophic. All products travelling to these destinations during stink bug season must undergo either a heat treatment or a stringent fumigation process. These measures eradicate any BMSBs hidden in products.

For more details, please refer to our BMSB Guides at:

<https://www.walleniuswilhelmsen.com/news-and-insights/highlighted-topics/brown-marmorated-stink-bugs> (including seasonal guidelines)

6. Sanctions

This booking and the carriage of any cargo is subject to and limited by all UN/US/EU/Norwegian/applicable country of the POR-POL-POD-PFD trade and financial sanctions ("Sanctions"). By booking or delivering cargo to Carrier, customer represents and warrants: (a) it is acting in compliance with the Sanctions; (b) is not exposing Carrier, its affiliated companies, vessels or contractors to the risk of breaching the Sanctions; (c) it will ensure all cargo delivered to Carrier shall not be delivered or carried, indirectly or directly, for the benefit of any individual, entity or person listed as a sanctioned person under any of the Sanctions. In the event that, due to the customer failing in the above duties or additional Sanctions being imposed while the cargo is in Carrier's possession, Carrier is exposed to a risk of breach of the Sanctions, in addition to Carrier's other rights, it may terminate the carriage of the cargo and discharge the cargo at a place of its convenience, without liability or further responsibility. All costs and expenses shall be for the customer. Customer shall indemnify, defend and hold harmless Carrier against any and all damages, liabilities, penalties, fines, costs, losses, and expenses (including attorney fees) arising out of or related to any breach of the Sanctions.

7. Customs matters

Customer is required to adhere to customs formalities. Amongst others, Customer is required to include full details regarding safety & security in Customer's export related documents. Customer is responsible for submitting correct documentation to Customs and checking whether the documentation will be accepted and processed. Cargos' blockage as a result of customs matters remains Customer's responsibility.

Customer is required to check and adhere to any Customs regulation or other authority restrictions/license requirements in the port of discharge of Customer's shipment. Customer remains responsible for failing to comply in whatever way to the aforementioned.

8. Military Cargo

If not otherwise stated our quotation / booking is limited to commercial, non-military, not flag bound cargo.

Military cargo can be both vehicles and static cargo.

The classification of military cargo depends on the following characteristics: Weapon / ammunition; Military vehicles or Military / Paramilitary equipment of any kind; Owner of the cargo is a military organization; Shipper and/or the consignee is a military organization; and Physical appearance e.g. vehicle in camouflage color, shows military logo or other attributes.

Flag bound cargo are cargoes required to be carried by a vessel having the flag of a specific country.

Military and Flag bound cargoes need to be separately quoted/booked.

BOOKING CONFIRMATION

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Booking No. : USSAV2351444
Quote No. :
Carrier : Wallenius Wilhelmsen Ocean AS
Company : WORLDWIDE NEXUS LOGISTICS
Attention of : JEAN LOPEZ
Reference :

Thank you for your booking. We are pleased to confirm the details as follows:

Vessel	: MORNING LADY	Voyage	: EC311-MLY
Place of Receipt (POR)	:		
Port of Loading (POL)	: BRUNSWICK, GA	Estimated Time of Arrival (ETA)	: 17/12/2023
		Estimated Time of Departure (ETD)	: 17/12/2023
Port of Discharge (POD)	: SAN ANTONIO	Estimated Time of Arrival (ETA)	: 12/01/2024
Place of Delivery (PFD)	:		

ETA/ETD of POL/POD is subject to change and Carrier has the right to tranship cargo. Please also closely monitor the vessel's schedule on our website: <https://www.walleniuswilhelmsen.com/schedules>

Booking Items

Item	Qty	Cargo	Dims (L*W*H)	Weight (KGS)	CBM (M3)	Ocean Freight	Rate Basis
1	1	BOAT ON TRAILER	7.01 * 2.59 * 3.43	1,400.000	62.281	84.00 USD	RT

Total	1			1,400.000	62.281		
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- Cargo cut-off** : * Cut off for titled cargo = 3 full working days prior to vessel ETA
* Cut off for non titled cargo = 2 full working days prior to vessel ETA
- Receiving Times** : Monday through Friday 8:00 A.M. - 4:00 P.M.
Cut Off Date:
2 Full Working Days Prior to Vessel Arrival
- Important Information** : **APPOINTMENT REQUIRED FOR ALL CARGO REQUIRING CRANE LIFT AND ANY BOATS EXCEEDING 30' IN LENGTH.

Crane hire is additional to THL. Please contact SSI terminal to confirm if you cargo will require a crane.
Tel: 912-267-6766
Email: : 2WAMAVPSSIMarineTerminal@walwil.com

In an effort to improve efficiency for motor carriers and to better serve our customers, AVP Marine will initiate a crane appointment process effective September 1, 2023

In order to deliver or pick up cargo requiring a crane lift please follow the below steps:

- 1)For imports, confirm cargo has all required releases, including customs, USDA and finance releases. For exports assure that you have a valid booking number and that the sailing date is not more than 30 days out.
 - 2)Send an email to 2WAMAVPSSIMarineTerminal@walwil.com with requested date and time of crane lift. Requests are to be sent at least 24 hours in advance
 - 3)AVP personnel will confirm availability of the requested date and time. If that time is not available, then the next available time will be suggested.
 - 4)Once a crane appointment is approved by both AVP and shipper, you will receive an emailing confirming the date and time. Email subject line will say "Crane Appointment Confirmation"
 - 5)24-hour notice is required to cancel crane appointments.
- If appoint is cancelled inside the 24-hour notice window or there is a no call no show additional charges may apply. If the truck has not showed up by the scheduled crane lift start time it will be considered a no call no show and additional charges may apply.

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Terms & Conditions:

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Expiration of this Booking Confirmation: If cargo is not presented or available for shipment at the POR/POL in the date indicated under the above remarks or local rules and regulations, this Booking Confirmation will be void and of no further effect.

2. Cargo Condition

Cargo is to be presented in all respects safe and ready for ocean shipment (also refer to section 3 below) including free of any oil, soil, dust, grease, or other contamination. This includes all surfaces both internal and external (e.g. machinery, cabs, hoses, ladders, tires, wheel arches etc.). Should the cargo be received in a dirty/contaminated condition, Carrier has the right not to accept cargo for loading until cleaning has taken place which is at the cost and responsibility of the customer. For more details, please refer to our Clean Cargo Guide at: <https://www.walleniuswilhelmsen.com/storage/downloads/clean-cargo-guide.pdf>.

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Breakbulk cargo must be presented in a forkliftable manner or in a state ready to carry out a safe crane lift. If the cargo is presented to the wharf in a non-forkliftable condition after being quoted at the forkliftable rate, the original rate quote will no longer be valid. All additional crane cost and ocean freight charges will be for the account of customer.

AFV (Alternative Fuel Vehicles) can be accepted with specific requirements according Cargo Handling instructions. Shipper is responsible for ensuring that the cargo is safe for shipment.

All used vehicles will have their 12/24-volt battery disconnected after the vehicle has been loaded onboard the vessel.

Carrier does not accept the loading of used BEV (Battery Electric Vehicles) onboard WalWil vessels until further notice.

Carrier does not accept personal effects and will not be responsible for personal effects or any other goods shipped within automobiles, motorhomes, or any other type of cargo, unless Carrier agrees in writing to accept such additional goods and extra freight is paid. Carrier reserves the right to refuse to load any cargo containing personal effects.

3. Cargo Packing & Markings

All cargo must be marked with the following: Vessel/Voyage, Pol/Pod (incl. any transit port), Consignee, Length, Width, Height & Weight, Centre of gravity (when applicable), Cargo ID and the Booking number.

Packed cargo must be secured inside the packaging so that the cargo is safe for ocean transport and under no circumstances can move inside the packaging.

Break-bulk cargo must be adequately packaged for ocean shipment and forklift handling: proper inspection panels, lifting points and center of gravity clearly marked where applicable. In addition, Break-bulk cargo weighing 10 metric ton or more must have securing points directly connected to the unit itself and accessible for securing the unit to the vessel. The securing points must be clearly marked.

For more details, please refer to our Cargo Packaging Guide at: <https://www.walleniuswilhelmsen.com/storage/downloads/packing-guideline.pdf>

4. Equipment availability

Where cargo is to be loaded on Carrier's equipment, such equipment will, in general, be made available **7 days** prior to loading of ocean vessel. In case an earlier delivery is required, please contact the local Carrier office at port of load to confirm equipment availability. Earlier delivery will incur a daily charge for equipment usage until day 7 prior to loading. In case equipment is not available for the earlier delivery, double handling charges will be for account of the customer. In case equipment is released later than 7 days prior to loading, the double handling charges are for account of the carrier. Failure to clarify equipment availability may result in double handling charges, which would be for account of the customer.

After discharge, Carrier offers **3 days** free of demurrage. Should cargo remain after this time, equipment demurrage and stripping charges may apply, which will be for account of the customer. Please contact local Carrier office at port of discharge to confirm these charges and free time available upon cargo arrival.

5. BMSB

The proliferation of the Brown Marmorated Stink Bug (BMSB) is a growing international concern. Native to East Asia, the bug has now migrated to the US, Canada and Europe, where its ruin of crop harvests has had significant economic impact. Measures are being taken to prevent the BMSB from entering Australia, New Zealand, Papeete and Nouméa, where its impact on the ecosystem would be catastrophic. All products travelling to these destinations during stink bug season must undergo either a heat treatment or a stringent fumigation process. These measures eradicate any BMSBs hidden in products.

For more details, please refer to our BMSB Guides at:

<https://www.walleniuswilhelmsen.com/news-and-insights/highlighted-topics/brown-marmorated-stink-bugs> (including seasonal guidelines)

6. Sanctions

This booking and the carriage of any cargo is subject to and limited by all UN/US/EU/Norwegian/applicable country of the POR-POL-POD-PFD trade and financial sanctions ("Sanctions"). By booking or delivering cargo to Carrier, customer represents and warrants: (a) it is acting in compliance with the Sanctions; (b) is not exposing Carrier, its affiliated companies, vessels or contractors to the risk of breaching the Sanctions; (c) it will ensure all cargo delivered to Carrier shall not be delivered or carried, indirectly or directly, for the benefit of any individual, entity or person listed as a sanctioned person under any of the Sanctions. In the event that, due to the customer failing in the above duties or additional Sanctions being imposed while the cargo is in Carrier's possession, Carrier is exposed to a risk of breach of the Sanctions, in addition to Carrier's other rights, it may terminate the carriage of the cargo and discharge the cargo at a place of its convenience, without liability or further responsibility. All costs and expenses shall be for the customer. Customer shall indemnify, defend and hold harmless Carrier against any and all damages, liabilities, penalties, fines, costs, losses, and expenses (including attorney fees) arising out of or related to any breach of the Sanctions.

7. Customs matters

Customer is required to adhere to customs formalities. Amongst others, Customer is required to include full details regarding safety & security in Customer's export related documents. Customer is responsible for submitting correct documentation to Customs and checking whether the documentation will be accepted and processed. Cargos' blockage as a result of customs matters remains Customer's responsibility.

Customer is required to check and adhere to any Customs regulation or other authority restrictions/license requirements in the port of discharge of Customer's shipment. Customer remains responsible for failing to comply in whatever way to the aforementioned.

8. Military Cargo

If not otherwise stated our quotation / booking is limited to commercial, non-military, not flag bound cargo.

Military cargo can be both vehicles and static cargo.

The classification of military cargo depends on the following characteristics: Weapon / ammunition; Military vehicles or Military / Paramilitary equipment of any kind; Owner of the cargo is a military organization; Shipper and/or the consignee is a military organization; and Physical appearance e.g. vehicle in camouflage color, shows military logo or other attributes.

Flag bound cargo are cargoes required to be carried by a vessel having the flag of a specific country.

Military and Flag bound cargoes need to be separately quoted/booked.

EXHIBIT 2

BEFORE THE FEDERAL MARITIME COMMISSION

Washington D.C. Docket No. 25-15

WORLDWIDE NEXUS LOGISTICS, LLC,

Complainant,

vs.

WALLENIOUS WILHELMSEN OCEAN AS,

Respondent.

/

VIDEO TELECONFERENCE DEPOSITION
OF JEAN LOPEZ
Pages 1 through 88

Wednesday, February 25, 2026
10:00 a.m. - 12:40 p.m.
Via Zoom

Stenographically Reported By:
JONNA FOSTER
Court Reporter

APPEARANCES:

(All Parties Appeared Remotely.)

On behalf of the Respondent:

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LOPEZ EXHIBITS

(Exhibits Retained by Counsel.)

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1 Deposition taken before Jonna Foster, Court
2 Reporter and Notary Public in and for the State of
3 Florida at Large in the above cause.

4 - - - - -

5 (The witness produced his driver's license
6 for identification purposes.)

7 THEREUPON,

8 JEAN LOPEZ,

9 having been first duly sworn, was examined and
10 testified as follows:

11 DIRECT EXAMINATION

12 BY MS. DUNLOP:

13 Q Hi, Mr. Lopez. My name is Veronica Dunlop
14 I, as you know, represent the Respondent, Wallenius
15 Wilhelmsen Ocean AS in this proceeding with the FMC.

16 Before we begin I'm just going to
17 explain a few grouped rules, so the Court Reporter
18 can clearly take down everything we say. Have you
19 ever taken a deposition before or been part of a
20 deposition?

21 A No.

22 Q No. Okay. So we have a Court Reporter
23 who's taking down everything we say and so we need
24 to make sure that we answer verbally for the record
25 and that we wait, you know, each one of us until the

1 other is done speaking, so that we're not speaking
2 over each other, so she can clearly understand us.

3 A Okay. I understand.

4 Q Okay. If you don't understand a question
5 please let me know and I'll rephrase it, but if you
6 answer I'll assume that you understood the question.

7 A Understood.

8 Q Okay. If you need a break at any time
9 please let me know, you can take it. You'll just
10 have to answer the last question I asked before you
11 take the break.

12 A Okay.

13 Q Okay. And you are under oath today as you
14 know, so everything you say will have the same
15 weight as if you were testifying in a courtroom in
16 front of a judge.

17 A I understand.

18 Q If you don't know the answer to any
19 question please tell me. I mean, sorry please just
20 say no. Don't guess or speculate. If I ask for an
21 estimate or an approximation I will say that.

22 A Okay. I understand.

23 Q Okay. Do you have any questions about any
24 of those instructions?

25 A No.

1 Q Okay. Are you ready to proceed or do you
2 want to take a break?

3 A No, let's proceed.

4 Q All right. So I'm going to share any
5 screen with Exhibit 1. Let me make sure I know how
6 to do that. Okay. Can everybody see this, it says
7 Lopez Exhibit 1?

8 A Yes.

9 (Lopez Exhibit 1 was marked for
10 identification purposes.)

11 Q (By Ms. Dunlop) Okay. So this is the
12 notice of deposition that you received, correct,
13 Mr. Lopez?

14 A Yes, ma'am.

15 Q Okay. Dated January 6th, 2026?

16 A Yes.

17 Q And you're here today because of that
18 notice of deposition, correct?

19 A Yes.

20 Q Okay. Stop sharing for now. And where
21 are you now, Mr. Lopez?

22 A I'm at home.

23 Q You're at home. Okay. Is anybody in the
24 room with you?

25 A No.

1 Q Is there anybody other than the three
2 people on this call that can hear you or anything
3 that's going on?

4 A No.

5 Q And what is your current home address?

6 A 11043 NW 87 Lane, Doral, Florida, 33178.

7 Q Okay. Did anyone assist you in preparing
8 for this deposition today?

9 A No.

10 Q What documents did you review in
11 preparation for this deposition, if any?

12 A There's a lot of documents involved in
13 this, so I -- I tried to cover as much as I could.
14 On what documents? I was going over pretty much had
15 a lot of the emails and the correspondence that went
16 back and forth and just making sure my dates were in
17 correct order before I delivered them to you.

18 Q Thank you.

19 A Yeah.

20 Q Sorry, please continue if you weren't
21 finished.

22 A No. And just the -- the FRI that you
23 mentioned I should have available, the documents
24 that I gave you as answers for your interrogatories,
25 that's basically it.

1 Q Did you review any documents that you
2 didn't produce to us or that we didn't produce to
3 you?

4 A No. There was a supplemental document
5 that I sent you --

6 Q Uh-huh.

7 A -- about ten days ago.

8 Q Uh-huh.

9 A And that was added as well to the document
10 production index, I also review that, but, no, I
11 don't recall having any other document in -- in
12 review.

13 Q Did you review communications with your --
14 your customers like Andy of Miami, Commercial
15 Global, International Made In USA?

16 A No.

17 Q Did you review any communications with the
18 consignees in Chile?

19 A No.

20 Q Did you review any documents provided by
21 your customers?

22 A Yeah, I review when they send me the --
23 the -- well, the -- the last package of pictures
24 that they sent me to present to you on the -- for
25 the interrogatories, yeah, and -- and, yeah, that

1 was -- that was it. I didn't have documents in
2 writing of any -- that would have any particular
3 information for this interrogatory or deposition.

4 Q Okay. Did you review any financial
5 records like invoices or payment confirmations
6 relating to the shipments?

7 A I review them, yes.

8 Q And those are again the same ones that
9 have been produced in discovery in this matter,
10 right?

11 A Yes.

12 Q Okay.

13 A Yes.

14 Q Have you communicated with any lawyer
15 regarding this case, any aspect of this case?

16 A In the preparation of this?

17 Q Yes.

18 A No.

19 Q In the course of the kind of entire
20 dispute from when the facts arose when the shipments
21 were lost all the way through now have you consulted
22 with any lawyer?

23 A I did -- I did consulted a lawyer before I
24 started this FMC process.

25 Q Okay. Do you recall that lawyer's name?

1 A I don't, but I -- I could get it for you
2 if you need me to find the name.

3 Q Not right now. We'll follow up and
4 request that name in writing later.

5 A Okay.

6 Q And when was the last time you
7 communicated with that lawyer roughly, an
8 approximation?

9 A It was -- it was either in January or
10 February of this month -- of this -- I'm sorry, of
11 last year.

12 Q So January/February of 2025?

13 A 2025, yeah.

14 Q And do you recall --

15 A It was before the process started.

16 Q Okay. And do you recall what you
17 communicated about, what types of things you learned
18 from that attorney?

19 A Yes, I -- I requested assistance to -- to
20 see if they would be able to -- to carry this claim
21 for me, yeah, with the FMC to make that claim with
22 the FMC and they mentioned that there was no --
23 no -- what's it called? There was a word that he
24 used. I'm sorry, I'm trying to recall the word.
25 Precedent.

1 Q There is no precedent?

2 A There was no precedent and that it might
3 not proceed. And then I look into how much will it
4 cost me to attempt to do it with a lawyer and it was
5 apparently big amount of money to what I think it
6 deserved, so then I decided to do it on my own.

7 Q Okay. And so is it safe to say, correct
8 me if I'm wrong, that that attorney advised that
9 there wasn't really much of a -- much strength to
10 this claim and he advised against proceeding with
11 the FMC or is that a miss -- an unfair
12 characterization?

13 A Yeah. No, what I actually didn't like on
14 his answer is that he said there was no precedent.

15 Q Okay.

16 A So I didn't think he was going to follow
17 through.

18 Q Sorry. What did you mean he -- he was not
19 going to follow through?

20 A I asked him first because it took like a
21 month to get me an appointment and I ask is there
22 any particular relationship because I understand
23 Wallenius is a big carrier, so is there any sort of
24 connection with Wallenius and he said he had to
25 check, so that for me was not good.

1 So I was like, okay, let's have the
2 meeting. I assume he would know immediately if he
3 had or not a relationship with Wallenius. And then
4 just from the beginning of the conversation there
5 was the -- the no precedent part, so I was like,
6 okay, so, yeah, I -- I can't go further, okay, thank
7 you very much and we never spoke again.

8 Q Okay. When was the last time you
9 discussed this matter, this dispute with any of your
10 customers that were involved in the shipments?

11 A Last week.

12 Q And what were those discussions about?

13 A I was just notifying Andy of Miami and
14 Cargo Land that I will have a deposition coming in.
15 I mean, I -- I actually send them the -- the -- I
16 keep always informing them of the steps that we
17 going through, but last week I told them that I was
18 having a deposition this week.

19 Q And that was only with Andy of Miami and
20 Cargo Land?

21 A Yes.

22 Q Isn't there a third customer that was
23 involved in -- in these shipments?

24 A No, Cargo Land represents two consignees.

25 Q I see. So how often do you speak with

1 Andy of Miami and Cargo Land about these
2 proceedings?

3 A Yes, well, actually they're informed of
4 the steps and what we going through and what I had
5 to present or what I -- what I have forthcoming, but
6 I gave them the whole schedule order of the court,
7 so they're pretty aware. I actually hand in the
8 whole schedule to them, so they just waiting for the
9 outcome. They don't ask many questions now because
10 they know there is a process in hand and a schedule.

11 Q Do you share any of the other documents
12 with them, for example, documents that you received
13 from us in discovery?

14 A No, I haven't and they haven't requested
15 it either.

16 Q Have you received any advice or
17 instruction from Andy of Miami or Cargo Land
18 regarding this proceeding?

19 A Not regarding the proceeding, no.

20 Q Regarding anything to do with the -- the
21 kind of facts or the -- the evolution this case?

22 A No. Instructions you said, right?

23 Q Yeah.

24 A Yeah, no.

25 Q Okay. And these communications that you

1 have with Andy of Miami and Cargo Land are they in
2 writing?

3 A No, nowadays most of them are done via
4 phone conversations.

5 Q And have you produced any of the
6 communications you've had with them in writing about
7 these proceedings?

8 A If I delivered them to you?

9 Q Yes.

10 A I believe I gave you the ones that I sent
11 via email.

12 Q Okay.

13 A Yeah, I believe I did. I can double check
14 on that, but I believe I did give you that
15 information. And as far as phone conversations I --
16 I don't recall the conversations, so I wouldn't have
17 a way to give them to you.

18 Q Okay. Did Andy of Miami or Cargo Land
19 ever instruct you to file a claim against Wallenius?

20 A No.

21 Q Did either of them ever instruct you to
22 file this FMC complaint?

23 A No.

24 Q Did either of them authorize you to object
25 on their behalf?

1 A They were pushing and pushing from the
2 very beginning on behalf of their customers as well,
3 so, yeah, they kept on pushing me to do something.
4 So I look and I try and everything directly with the
5 carrier and it didn't work, so I kept on looking for
6 ways to see what could be done.

7 Q When you say they were pushing can you
8 just give some more detail to what that means that
9 they were pushing you to do?

10 A Yes. Well, throughout the course of these
11 past two years and mostly the first year and a half
12 I was constantly phoned by the customers and it's
13 mostly phones that's -- that's how they communicate
14 looking for answers which I didn't have or
15 resolutions, not only answers to what happened, but
16 resolutions because I did promise that I -- not a
17 promise, but I advised that a resolution was in the
18 way -- in the works.

19 And my -- my work basically was
20 losing credibility because this solution never came
21 around. So the question always arise, okay, now
22 what you going to do about it?

23 Q And did Andy of Miami or Cargo Land ever
24 assign any of their rights to you?

25 A No. Legally, no, I don't -- I wouldn't

1 even know how to do it.

2 Q Okay. And have you compensated Andy of
3 Miami or Cargo Land for their losses?

4 A No.

5 Q And do you still do business with Andy of
6 Miami and Cargo Land?

7 A It's starting -- they're starting to -- to
8 request rates again and I'm -- I'm shipping a couple
9 of things for Andy of Miami again. He stopped
10 shipping with me for quite some time, perhaps a year
11 and a half.

12 Q And how many shipments let's say, I don't
13 know, per month or per year would you do with Andy
14 of Miami and Cargo Land each individually?

15 A Well, we're talking number of bill of
16 ladings, number of units?

17 Q However you'd like to quantify it.
18 However makes the most sense.

19 A Well, Andy of Miami since the beginning of
20 the foundation of my company was one of my first
21 customers.

22 Q Uh-huh.

23 A Since back in 2020. He would have at
24 least one unit a month for RORO business.
25 That's a -- that's an important business for a small

1 freight forwarder, so -- so, yes, he -- he
2 accompanied me from the very beginning and that
3 stopped. That stopped a month after this happened.

4 Q Okay. And now is he -- how many units
5 would you say Andy of Miami is doing with you now?

6 A No, he just did a couple of units, just a
7 couple of units in the past three months.

8 Q And then what about with Cargo Land?

9 A Cargo Land -- Cargo Land never stopped
10 shipping with me, but it wasn't -- it wasn't a lot
11 of business from Cargo Land. I don't know, maybe
12 ten units a year or for a -- for a couple years.

13 She obviously -- I meant she because
14 Susana Olmo is the owner of Cargo Land, she's also a
15 freight forwarder with -- that has the same
16 qualifications then me, so the only reason that she
17 would come and ship with me is because I had a
18 service contract with Wallenius and she didn't.

19 Q I see. And so the business with Cargo
20 Land has been consistent for how many years would
21 you say?

22 A Well, she wasn't with me from the
23 beginning. It started a couple years after that,
24 2022 I assume, and then it lasted until -- I -- I
25 haven't done anything for them for the past year or

1 so. I -- I -- I didn't --

2 Q So --

3 A I didn't ask why because she did ship with
4 me while we were having this issue, but it has
5 stopped for the last year and I didn't want to talk
6 about business and -- and this matter because she
7 decided to stop and I couldn't question that.

8 Q Okay. And so you said your only two
9 customers involved with the three shipments that are
10 the subject of this dispute are Andy of Miami and
11 Cargo Land. Can you explain the relationship with
12 International Made In USA, Commercial Global and
13 World Boats Zuniga?

14 A They are Cargo Land's -- they are Cargo
15 Land cus -- and Andy of Miami's customers in Chile.
16 They are the -- the actual owners and consignees of
17 the cargo and they -- they -- they are their
18 customers. Yeah, they're not directly mine.

19 Q Okay. Can we break it down one by one,
20 so, for example, we'll start with Commercial Global,
21 how does that work? Who is that a customer of?

22 A Commercial Global? I'm not too sure about
23 the name Commercial Global.

24 Q What about World Boats Zuniga?

25 A World -- World Boats Zuniga is a customer

1 of Cargo Land.

2 Q And they're located in Chile, is that
3 right?

4 A That's correct.

5 Q And International Made In USA, who is that
6 a customer of?

7 A That is also a customer of Cargo Land.

8 Q And also located in Chile?

9 A That is correct.

10 Q And so for these three shipments the
11 ultimate customers in Chile were World Boats Zuniga,
12 International Made In USA and who was the third
13 recipient in Chile?

14 A Yeah, I don't remember the name right now.
15 Can I check on my files?

16 Q Sure.

17 A Do you mind?

18 Q No.

19 A I don't recall the name of Andy of Miami's
20 customer, but I do have it in my documents. One
21 quick second. Rodrigo, Rodrigo Naser.

22 Q Could you please spell that for the Court
23 Reporter?

24 A Rodrigo, R-O-D-R-I-G-O, Naser is
25 N-A-S-E-R.

1 Q Thank you. And he is Andy of Miami's
2 customer --

3 A Yes.

4 Q -- in Chile, is that correct?

5 A Yes.

6 Q And can you please identify which document
7 you just referred to?

8 A The house -- my house bill of lading.

9 Q And was that produced to us? Could you
10 tell us the production number if possible?

11 A Yes. I'm going to check my document
12 production index, okay?

13 Q Thank you.

14 A Just one second. Bill of lading -- house
15 bill of lading is Bates Number 0004.

16 Q So Rodrigo Naser, International Made In
17 USA and World Boats Zuniga did you have any
18 communications with any of them regarding these
19 shipments?

20 A I had communication with Mr. Naser
21 directly via -- once via phone conversation and then
22 we exchanged a couple of What's Apps. Basically I
23 was confirming what I already advised Andy of Miami
24 because Mr. Naser lost credibility on Andy of Miami,
25 so he wanted to confirm with me that whatever Andy

1 of Miami told him was in fact something that I said.
2 It was just a confirmation of what I explained Andy
3 on how the process was.

4 Q Have you produced those What's App
5 communications to us?

6 A I don't have them anymore.

7 Q Do you recall when you had these
8 communications?

9 A The last time he asked me directly was
10 over a year ago. I actually ask Andy of Miami to
11 maintain the line of communication with his
12 customers and I would communicate to him. I wanted
13 to maintain that line of communication.

14 Q Okay. And you didn't have any
15 communications with International Made In USA or
16 World Boats Zuniga, is that right?

17 A No. I believe I was in copy on one email
18 that Cargo Land sent to his customer and he -- she
19 decided to keep me on that communication, but that
20 was it. I've never spoke to anyone from any of
21 those two companies.

22 Q Do you recall who that email was with that
23 you were copied on?

24 A I don't recall.

25 Q And did you produce that email to us? If

1 you don't recall that's okay you can follow up after
2 the deposition.

3 A I don't recall.

4 Q Okay. So we will just request that you do
5 produce that if you haven't already, please.

6 A Okay.

7 Q And your current employer is the claimant
8 here, correct, Worldwide Nexus Logistics?

9 A My employment or my employer you said?

10 Q However you would characterize it.

11 A Yeah, well, I'm the owner and president of
12 Worldwide Nexus.

13 Q And what is the business address of
14 Worldwide Nexus?

15 A 8200 NW 41st Street, Suite 200, Doral,
16 Florida, 33166.

17 Q And how long -- excuse me. How long have
18 you held this role of president and owner of
19 Wallen -- excuse me, of Worldwide?

20 A Since 2020.

21 Q And you said that's when you started this
22 business, is that correct?

23 A That is correct.

24 Q And when did you first begin working in
25 logistics or freight forwarding or ocean

1 transportation in general?

2 A 2004.

3 Q Can you give me a chronology of the roles
4 that you've had and the things that you've done in
5 this industry since 2004?

6 A Okay. I started working in 2004 in the
7 export documentation area. Then I worked for the
8 equipment department or it's called equipment
9 control and then I was working in -- I haven't
10 recall this in a long time. I work -- no, then I
11 went to trade management for -- as a trade analyst
12 for the RORO division of the company.

13 Q What is that company?

14 A CSAV.

15 Q CSAV?

16 A Yes.

17 Q So that was the same company since 2004,
18 is that right?

19 A That is correct.

20 Q When did you take the role of equipment
21 control?

22 A That was 2006. That was two years after
23 my -- in the company.

24 Q And what about trade analyst?

25 A That was 2009 -- '10, 2010.

1 Q Thank you. And what happened after 2010?

2 A I became the -- I was the trade analyst
3 for the RORO division for -- since 2010 until 2013
4 and then I became the trade manager until the
5 closing of the company 2020.

6 Q And as the trade manager can you give me
7 an example of the kind of typical project you would
8 be working on or typical role that you would take?

9 A Yes, I was the key account manager for the
10 company. I was in charge of negotiations -- space
11 negotiations with other carriers, but mostly the
12 maintenance and the development of positions with
13 the OEMs in the North American region.

14 Q And was this exclusively for ocean
15 transportation or were there other types of
16 transportation involved?

17 A Ocean transportation only.

18 Q So it's safe to say then that you have
19 been involved in one aspect or another of the
20 logistics of ocean transportation since 2004, is
21 that right?

22 A Yeah. Yes.

23 Q Have you received any formal training with
24 respect to ocean transportation or logistics?

25 A No.

1 Q Have you ever been involved in any
2 regulatory proceedings or claims or disputes
3 involving ocean carriage?

4 A While I was in training once in 2012 there
5 was a major incident in the industry that involved
6 all the carriers, so I received training, but I
7 was -- I was just a trade analyst, so I only took
8 part in the training that was given company wide in
9 regards to our behavior in terms of communication
10 with other companies, other ocean carriers, but
11 other than that, no.

12 Q Okay. And so were you involved in any
13 kind of proceedings or claims prior to this
14 proceeding and claim you filed?

15 A No, I never got -- no, I was not involved
16 in any proceedings. We had a legal department to
17 take care of that.

18 Q Okay. And then what about since you
19 started Worldwide in 2020 have you been involved in
20 any legal proceedings since before this one?

21 A No.

22 Q No?

23 A No.

24 Q And have you filed any other claims before
25 this one?

1 A Never.

2 Q How many employees do you have at
3 Worldwide? Sorry, I couldn't hear you.

4 A No, I have no employees at the moment.

5 Q Have you had employees since 2020?

6 A I had one employee.

7 Q And --

8 A I had one employee, but he's no longer
9 with me since 2022.

10 Q Did he join in 2020?

11 A He -- he joined in 2021.

12 Q And what was his role?

13 A He stayed with me for 15 months. He was
14 doing operations and, yeah, he was not doing any
15 commercial activities, just basically operations.

16 Q And so you are the only manager, officer,
17 director or shareholder of Worldwide, is that
18 correct?

19 A My wife is also a shareholder, but she is
20 not active in the business.

21 Q And what are the share percentages between
22 you and your wife?

23 A 50/50.

24 Q And what business does Worldwide engage
25 in?

1 A In the transportation of goods from the US
2 to mostly Latin American countries.

3 Q All by ocean carriage, correct?

4 A Yes, that is correct.

5 Q Can you give me an example from start to
6 finish of a typical transaction that you would place
7 with your customer how it would go all the way from
8 the customer contacting you or you contacting the
9 customer through to the shipment of the cargo?

10 A Yeah, we get contacted by a customer,
11 whether it's a returning customer or a new customer.
12 I quote them accordingly within my contract rates
13 that I have from different carriers. If -- if they
14 choose our services I arrange a booking with the
15 carrier.

16 I prepare the documentation to
17 deliver the cargo at the port. Now, I must mention
18 something though, over 50 percent of my customers
19 are freight forwarders. They are small companies
20 that don't have any contracts with the big carriers,
21 so because I used to be in the industry as part of
22 the ocean carriers they are comfortable with me
23 handling there shipment.

24 So with that said some of them
25 prepare their own documentation, that's why I was

1 coming to that. When the customer -- I arrange the
2 booking and I prepare the documents to deliver the
3 cargo. To some of my customers like Andy of Miami
4 or Cargo Land I don't have to prepare those
5 documents because they prepare them on their own and
6 they're delivered the cargo on their own and they
7 prepare their export declarations on their own. So
8 the customers that don't have a company backing them
9 up or are not in the business of freight forwarding
10 I do the whole process which is preparing the
11 customs validation documents, the AS declarations,
12 the dock receipts.

13 Once cargo is delivered I get the
14 documents validated. I present them to the -- to
15 the carrier documentation department. I -- we send
16 a instruction to create bill of lading for the
17 transportation purposes and once the cargo is loaded
18 we just wait to get arrival notices with our
19 appointed agencies overseas and that's -- that's --
20 because RORO is a -- it's a port to port contract
21 service and not a door delivery. Our services ends
22 once the documentation is delivered to the end
23 customer and they take care of picking up the cargo
24 at destination.

25 Q So is all the cargo that you're involved

1 with RORO?

2 A 98 percent of it. I rarely move any
3 containers or I don't do any airplane cargo. I
4 don't, I -- yeah.

5 Q Is Worldwide Logistics licensed by the
6 FMC?

7 A Yes, ma'am.

8 Q And how would you describe Worldwide
9 Logistics' customer base?

10 A In regards to?

11 Q For example, you said 50 percent of your
12 customers are freight forwarders, what are the other
13 50 percent?

14 A Oh, word to mouth. Word to mouth from
15 previous -- I was in the business for a long time,
16 my phone number and my name is I guess well known in
17 Chile.

18 Q Let me rephrase. What I'm asking is what
19 types of companies or individuals are the other
20 50 percent?

21 A Oh.

22 Q I'm sorry.

23 A Dealers, dealers overseas either mostly
24 in -- in Chile and Peru which are my major markets,
25 but mostly dealers or -- or private companies that

1 are in the business of brokerage. A lot of brokers.
2 Referrals from my agents in Chile as well that I
3 don't do business with them directly, but through my
4 agents for example.

5 Q Okay. And how many, in the best way that
6 you can approximate, shipments are you involved in
7 per month or per year whatever metric makes sense
8 for you?

9 A From 150 to 200 units a year.

10 Q And it's fair to say that almost all of
11 those are RORO from the US to Latin America?

12 A Yes. Yes. Yes. The quote of my business
13 is -- is RORO.

14 Q Prior to these three shipments at issue
15 how many bookings have you had with Wallenius in an
16 approximation?

17 A I dealt with Wallenius for two complete
18 years. One of them was almost -- yeah, it's under
19 100 units per year that I gave Wallenius in
20 business.

21 Q So would you say it was about half of your
22 business for those two years then?

23 A Wallenius was my preferred carrier in 2023
24 and 2022. It was the only contract I had since
25 the -- the -- the opening of my business, so I -- we

1 supported each other for two whole years until this
2 incident.

3 Q And you said it was 2022 and 2023 that you
4 were --

5 A Yes.

6 Q Okay.

7 A Yes.

8 Q And so you're saying that since this
9 incident you have not been involved with Wallenius?

10 A We haven't shipped -- I -- I'm sorry, we
11 did, we did send a couple of shipments, in 2024,
12 one, and then once in 2025. But the majority of my
13 business with Wallenius was going to Chile and they
14 stopped the service to Chile in March 2025, but
15 since then I don't have shipment with them.

16 Q And other than this present dispute and
17 the facts that gave rise to this present dispute
18 have you ever had any other issues with Wallenius
19 and their shipments?

20 A No.

21 Q And are you the person who prepared and
22 submitted Worldwide's responses to discovery in this
23 matter?

24 A Responses to?

25 Q To discovery.

1 A Yes.

2 Q Did anyone assist you in preparing those
3 responses?

4 A No.

5 Q Are you the person who maintains Worldwide
6 Logistics' business records like the booking
7 records, invoices, communications?

8 A Yes.

9 Q So then you were the custodian of
10 Worldwide's records for the purpose of this
11 proceeding?

12 A Yes.

13 Q How many shipments prior to the shipments
14 giving rise to this matter, you know, approximately
15 would you say you've handled involving Peru and/or
16 Chile?

17 A Peru and Chile. 95 percent of my business
18 is to Peru and Chile, if not a little more.

19 Q Okay.

20 A Out of -- now, out of that 95, 90 percent
21 is to Chile.

22 Q And prior to this case have you dealt with
23 cargo seizure customs holds before in Peru or Chile?

24 A No.

25 Q Can you explain who is Inter American

1 Cargo Limited?

2 A Yes. In Chile I appoint a documentation
3 agent to deliver my house bill of ladings to the
4 final customers. Now, Inter American Cargo was my
5 agent when this incident happened and then the
6 company closed in 2020 -- maybe the end of 2024.
7 The owner retired, so he was no longer in the
8 business, so I -- I -- I had to appoint another one.

9 But their -- their sole purpose was
10 to have the master bill of lading, what ever is it
11 called, declared to Chilean customs and then have
12 our house bill of lading declared as well to Chilean
13 customs and that has relating to our customer.

14 Q Okay. And do you have written agreements
15 with your customers, Andy of Miami and Cargo Land,
16 for the subject shipments?

17 A Emails. You mean the request of the
18 booking and the delivery of the booking
19 confirmation, would that be considered an agreement?

20 Q It's however it is that you two came to a
21 formal agreement to engage in this transaction
22 together.

23 A Yes. Then we do, yes.

24 Q And those -- the form of those agreements
25 is emails?

1 A Yes.

2 Q And those emails have been produced to us,
3 correct?

4 A Yes.

5 Q Did Worldwide Logistics ever take title to
6 any of the cargo in the three shipments?

7 A No. What you mean we take title is take
8 ownership?

9 Q Did Worldwide Logistics have any kind of
10 ownership interest or right to the cargo?

11 A No, not at the time of shipment.

12 Q At any other time?

13 A No.

14 Q What about any kind of security interest
15 or lien in the cargo?

16 A None.

17 Q You're aware that we contacted Andy of
18 Miami with respect to this proceeding in
19 October of 2024, correct?

20 A Correct.

21 Q And were your communications with Andy of
22 Miami after we contacted him?

23 A He called me and -- and he said that you
24 called him and he -- he wrote down your name and to
25 ask him -- I don't recall the exact conversation.

1 He said that you called him and ask him about the
2 shipment. I don't remember the details if he ever
3 mentioned it and as I -- I thought that wasn't part
4 of the procedure and I email you then that.

5 Q What were your communications with Andy of
6 Miami about that call or anything with respect to
7 the proceedings after that call?

8 A No, just that he called me and he told me
9 that you called and that was the end of it.

10 Q Okay. We've been going about an hour.
11 This is a good time to take a break if you would
12 like?

13 A Okay. How long do we have for break?

14 Q How's 15 minutes?

15 A Okay.

16 Q Okay. Great.

17 MS. DUNLOP: We'll go off the record.

18 Thank you.

19 THE WITNESS: Thank you.

20 (There was a brief recess.)

21 Q (By Ms. Dunlop) Mr. Lopez, are you ready
22 to proceed?

23 A Yes, ma'am.

24 Q Okay. Previously we talked about your
25 experience with ocean cargo. Did you ever deal with

1 any claims filed against any of the companies you
2 were at whether it was CSAV or Worldwide?

3 A Yes. Yes. When I was a trade manager in
4 my last position I was requested by the legal team
5 our feedback on the position of the customer within
6 the company. What I mean with that is contribution
7 was taken in consideration when -- when con -- and
8 length of contracts when there was incidents that
9 needed for the legal team to arrange payment for.

10 What I mean with that, because I see
11 that you didn't understand, is the company that I
12 worked for they made -- when there was cargo, just
13 like it happened in this case, when there was
14 instances that -- and it happened two or three times
15 within the time I was the trade manager the same
16 scenarios were the company had to be responsible for
17 what happened to the cargo when it was lost except
18 for an accident because it happened within -- that's
19 what happens two or three times within the port it
20 happened accident at the port that will become total
21 loss of equipment or -- or cargo the company would
22 pay immediately to the customers, so it wouldn't
23 harm their commercial activity.

24 And -- and then after that we were no
25 longer part of the process because I guess the

1 company would take care of it with insurance
2 companies, but -- and that's what I suggested for
3 Wallenius to do the same.

4 Q You're saying that there were claims filed
5 against CSAV, but not in court, right? I'm -- what
6 I'm asking and I should clarify is that --

7 A Oh.

8 Q -- I'm wondering if there are any -- if
9 you've been part of or been aware of any claims
10 filed in a court --

11 A No.

12 Q -- against a company that you worked for
13 with respect to lost or damaged cargo?

14 A Understood. No, I wasn't involved.

15 Q Thank you. Okay. Thank you. And can you
16 just tell me your wife's name and occupation,
17 please?

18 A Yes. Mensys, M-E-N-S-Y-S, Montilla. It's
19 M-O-N-T-I-L-L-A. And she's a substitute teacher.

20 Q Thank you. So it was you that arranged
21 these three shipments that are the subject of this
22 claim with Wallenius, is that right?

23 A Yes. Yes.

24 Q And what was the cargo for each shipment?

25 A It was a boat on trailer.

1 Q Okay. I am going to share my screen and
2 show Exhibit 2. Okay. Can everybody see this
3 Lopez Exhibit 2?

4 (Lopez Exhibit 2 was marked for
5 identification purposes.)

6 A Yes.

7 Q (By Ms. Dunlop) Okay. And you're familiar
8 with this document, is that correct, Mr. Lopez?

9 A Yes.

10 Q And this is the booking confirmation that
11 you received from Wallenius for one of those
12 shipments, a boat on a trailer, correct?

13 A Yes.

14 Q And this is a document that you would
15 receive regularly in the course of doing business at
16 Worldwide, correct?

17 A Yes.

18 Q Okay. So this Exhibit 2 is
19 Booking Number USSAV2348017, right?

20 A Yes.

21 Q And it is for one 2021 Access T22 on its
22 trailer, in parenthesis, boat on trailer, agreed?

23 A Yes.

24 Q Okay. And then I'm going to show briefly
25 Exhibits 3 and 4 which you agree are the other two

1 booking confirmations for the other two shipments,
2 correct?

3 (Lopez Exhibits 3 and 4 were marked for
4 identification purposes.)

5 A Yes, correct.

6 Q And Exhibit 3 is
7 Booking Number USSAV2348173 for used boat on trailer
8 and Exhibit 4 is USSAV2351444 Booking Number, for
9 one boat on trailer, right?

10 A Yes.

11 Q And other than the different booking
12 numbers and boats that were shipped those documents
13 are the same, meaning that these are the form
14 booking confirmations that you would regularly
15 receive from Wallenius when you book for a shipment
16 with Wallenius, correct?

17 A Correct.

18 Q Okay. So now if you see this highlighted
19 portion here underneath where it says booking
20 confirmation it says subject to terms and conditions
21 of the carrier's bill of lading or sea waybill,
22 correct?

23 A I see it, yes.

24 Q And then if I scroll down to just halfway
25 through the page again this highlighted portion says

1 or is subject to the terms of carrier's bill of
2 lading or sea waybill and any applicable service
3 contract, correct?

4 A I see, yes.

5 Q And then if I scroll to the second page of
6 the document again it says terms and conditions,
7 booking is subject to the terms and conditions on
8 the carrier's bill of lading or sea waybill or any
9 applicable service contract and then it lists the
10 details of a website where you can see the actual
11 terms and conditions and provide a link to that
12 website, correct?

13 A I see, yes.

14 Q And so three times on this booking
15 confirmation Wallenius specifies that the booking is
16 subject to Wallenius's terms and conditions,
17 correct?

18 A I see it, yes.

19 Q And then it's the same we can agree for
20 Exhibits 3 and 4, correct?

21 A Correct.

22 Q Okay. Thank you. I'll stop sharing for
23 now. And I will show the next exhibit. Can you all
24 see Lopez Exhibit 5 on my screen?

25 A Yes.

1 (Lopez Exhibit 5 was marked for
2 identification purposes.)

3 Q (By Ms. Dunlop) Okay. Exhibit 5 is
4 Wallenius's waybill or bill of lading which is
5 US2387246, correct?

6 A Correct.

7 Q And this is a typical bill of lading you
8 would receive from Wallenius for the shipment you
9 book for Wallenius during the regular course of your
10 business, correct?

11 A Correct.

12 Q And on this bill of lading it says that
13 you, the shipper, Worldwide Nexus, are shipping one
14 package and that one package is the 2011 used boat
15 Sea Ray model Sun Dancer on a 2023 trailer Magic,
16 correct?

17 A Correct.

18 Q And then here again on the right hand side
19 of the bill of lading it says merchant agrees to the
20 terms of carrier's standard bill of lading which
21 apply to this waybill, as well as such terms,
22 conditions, limitations and general business terms
23 and conditions as appearing at
24 www.WallenusWilhelmsen.com, correct?

25 A Correct.

1 Q Okay. Now, if I scroll down to the bottom
2 here of the bill of lading again highlighted it says
3 the total number of packages or units for carriage
4 is one, correct? Do you want me to zoom in? Is
5 that better?

6 A Yes. Okay. I see.

7 Q Okay. And then just below that there's
8 another highlighted portion that says the full value
9 of US dollars declared to avoid carrier's package or
10 customary freight unit and that full value where
11 it's left blank that you could declare is actually
12 left blank such that there is no declared value to
13 avoid the carrier's package or customary freight
14 unit, correct?

15 A Correct.

16 Q Okay. I'm going to move to Exhibit 6
17 which is the carrier, Wallenius's waybill US238773
18 and here again it's one package shipped which is a
19 2020 US -- sorry, scratch that. A 2020 used boat
20 Sea Ray model SLX on a used trailer, correct? Do
21 you need me to zoom in? Can you see?

22 (Lopez Exhibit 6 was marked for
23 identification purposes.)

24 A No. No. I said correct, yes.

25 Q (By Ms. Dunlop) Oh, sorry, didn't hear

1 you. And again, this is shipped by you, Worldwide
2 Nexus Logistics. And the same text here appears on
3 the right hand side of the bill stating that the
4 merchant agrees to the carrier's standard bill of
5 lading's terms and conditions, correct?

6 A Correct.

7 Q And again, at the bottom the total number
8 of packages or units is marked as one and there is
9 no value declared for the cargo, correct?

10 A Correct.

11 Q Okay. Going to show Exhibit 7 now and
12 this is the third bill of lading which is M -- oh,
13 sorry, US2387995. The shipper is Worldwide Nexus
14 Logistics. Again, there is one package shipped and
15 that one package is a 2021 Access T22 Boat with
16 Malibu engine on its Malibu tandem axle trailer,
17 correct?

18 (Lopez Exhibit 7 was marked for
19 identification purposes.)

20 A Correct.

21 Q (By Ms. Dunlop) And this highlighted
22 language on the right side is the same stating that
23 the merchant agrees to the carrier's standard terms?

24 A Correct.

25 Q And then at the bottom here again it's

1 highlighted the total number of packages or unit as
2 one and there is no money value declared for the
3 cargo, correct?

4 A Correct.

5 Q Okay. Thank you. I'll stop sharing.
6 Okay. I'm going to share again. We're going to
7 move to Exhibit 8.

8 (Lopez Exhibit 8 was marked for
9 identification purposes.)

10 Q (By Ms. Dunlop) Can you see this? Oh,
11 okay. Sorry, couldn't hear you.

12 A Yes.

13 Q Okay. This is Exhibit 8 and I'm going to
14 zoom in because the text is very small, but you can
15 see here you agree that these are the terms and
16 conditions that are available at
17 WalleniusWilhelmsen.com, correct?

18 A Correct.

19 Q Okay. And have you seen those terms and
20 conditions before?

21 A I have.

22 Q Did you review these terms and conditions
23 before filing this dispute?

24 A I -- I -- I have, yes.

25 Q When did you review or how many times did

1 you review these terms and conditions?

2 A I -- I review it prior to this claim. How
3 many times you ask?

4 Q For example, you could tell me if -- did
5 you review them when you first booked the cargo and
6 then again later on when you filed this claim or
7 at -- how many instances would you say approximately
8 that you've reviewed these terms and conditions?

9 A I -- I -- the terms and conditions are --
10 are basically a standard practice in shipping, so --

11 Q So is it fair to say you're -- you're
12 familiar, you understand these terms and conditions?

13 A I -- I understand the -- the -- the
14 meaning of terms and conditions, yes.

15 Q But these particular terms and conditions
16 that are available at WalleniusWilhelmsen.com?

17 A I'm not exactly familiar with the whole
18 content of it because I don't remember it, but I
19 read them.

20 Q Okay.

21 A I'm sure I did, yes.

22 Q Okay. We'll scroll down to Clause 17.
23 I'm going to zoom in a lot here. And here under
24 Clause 17 it says where compulsorily applicable this
25 contract is governed by COGSA, correct?

1 A I see, yes.

2 Q And do you know what COGSA stands for?

3 A No.

4 Q Okay. And then in Clause 18 it says here
5 if the merchant has not declared a higher value on
6 the face of this bill of lading and paid extra
7 freight for the higher declaration the carrier's
8 liability is in any event limited to USD 500 per
9 package or for goods not shipped in packages,
10 correct?

11 A Correct.

12 Q And then we'll scroll to Clause 20 which
13 is titled Notice of Loss Time Bar and here it says
14 the carrier shall be discharged from any liability
15 whatsoever in respect of the goods unless suit is
16 brought within one year after their delivery or the
17 date on which they should have been delivered,
18 correct?

19 A Correct.

20 Q And --

21 A I see.

22 Q Thank you. And in Clause 21, application
23 of these terms and conditions, it states these terms
24 and conditions shall apply in any action against the
25 carrier for any loss or damage whatsoever and

1 howsoever occurring, correct?

2 A I see.

3 Q Okay. I'll stop sharing. Did you
4 negotiate any deviation from those terms and
5 conditions with Wallenius?

6 A No.

7 Q You cut out a little.

8 A No, I didn't.

9 Q No, you didn't. Okay. And did you -- you
10 did not declare any value for any of the three
11 boats, correct?

12 A I did not declare it. It's not standard
13 in shipping.

14 Q Did you pay any additional freight for any
15 of the three boats?

16 A Any additional freight, no, I didn't.

17 Q Okay. So you've worked in ocean
18 transportation since 20 -- oh, sorry, 2004, correct?

19 A Yes.

20 Q And you said that you're not familiar with
21 COGSA or is it just that you don't know what COGSA
22 stands for?

23 A Yeah, you asked me what it stands for, I
24 don't -- I don't know.

25 Q I see.

1 A If I ever read it I don't remember it.

2 Q Okay.

3 A Yeah, I -- I -- as far as I know it's --
4 it's a -- an international laws that -- that are
5 govern I guess the bill of lading, but that's the
6 extent of it. I wasn't involved of this -- in that
7 part of the business, so I wouldn't know.

8 Q Okay. So COGSA stands for the Carriage of
9 Goods by Sea Act and it governs ocean carriage to
10 and from the United States, is that something that
11 you're aware of or no?

12 A No.

13 Q No? Sorry, you cut out. Just so the
14 Court Reporter can hear you.

15 A No. You're saying that governs the
16 shipment in and out of the United States?

17 Q Correct.

18 A And that's only the United States?

19 Q You could just answer yes or no if you're
20 familiar with this law.

21 A No, I'm not familiar with it.

22 Q No, okay. Thank you. Did you know that
23 there is a one year time bar for filing suit against
24 the carrier?

25 A No.

1 Q But you read these terms and conditions
2 that said there was a one year time bar for filing a
3 claim against the carrier?

4 A I -- I just heard it from you.

5 Q So prior to me reading these terms and
6 conditions to you you were not aware that there was
7 a one year time bar for filing a claim against
8 Wallenius?

9 A No.

10 Q Do you understand what I mean when I say a
11 time bar?

12 A Yes, I do.

13 Q Okay. You communicated with Wallenius'
14 claims personnel with respect to these losses,
15 including Karen Umania, correct?

16 A Yes.

17 Q And did Wallenius ever admit any
18 liability?

19 A No.

20 Q Did Wallenius agree to pay you any amount?

21 A Never agreed to pay us any amount, no.

22 Q Did Wallenius ever agree to extend the
23 time in which you could file a claim or bring suit
24 against Wallenius?

25 A No, because I never asked them

1 specifically with that wording. I asked Wallenius
2 because my -- my knowledge on any law incident in
3 any particular business is or was that within one
4 year there is nothing you can do in any cases and
5 the carrier will just not talk to you anymore.

6 And I didn't want that to happen in
7 this case, so I asked if there was any extension to
8 our communication and our legal communication
9 because I didn't know if they want to continue
10 talking to me or give me any, what is it called,
11 anymore information about the development on the
12 resolutions that they were working on.

13 Q Okay. So you were aware that you only had
14 one year to bring this dispute to a court?

15 A I asked for clarity. I asked -- I asked
16 if there was any -- I believe I never used the word
17 COGSA.

18 Q Sir, we didn't -- we'll put COGSA aside
19 for now. You previously just a moment ago you said
20 that you knew that you only had one year for the
21 carrier to do something?

22 A That's general knowledge, yeah.

23 Q And when you say "to do something" what do
24 you mean by that, what was your knowledge of what
25 the year meant?

1 A Can you rephrase, I'm sorry?

2 Q I can. That wasn't a very well phrased
3 question. You said that you knew you only had a
4 year to do something with the carrier, after that
5 year the carrier wouldn't do anything, can you just
6 explain what you mean by that?

7 A Oh, yes. I -- I was taking the assumption
8 that after a year the carrier will stop dealing with
9 me directly in regards to our solution resolutions,
10 so I asked I believe more than a couple of times if
11 they would extend the time to make sure that we were
12 still communicating, so I was asking for clarity.

13 Q Okay. So I'm going to share my screen
14 again and I'm going to show Exhibit 9. Can you see
15 this okay?

16 A Yeah.

17 (Lopez Exhibit 9 was marked for
18 identification purposes.)

19 Q (By Ms. Dunlop) Okay. So these are -- you
20 probably will recognize your communications with
21 Ms. Umania, so this is an email from you to
22 Karen Umania dated November 25th, 2024, correct?

23 A Yes.

24 Q And you asked here in this yellow
25 highlighted text you said, We need to discuss

1 extensions of the status of limitations to avoid any
2 issue that may arise doing -- due to this unsolved
3 matter after one year, correct?

4 A Yes. Correct.

5 Q And then if I scroll here this is the next
6 email in that chain and this is from you again to
7 Ms. Umania dated December 2nd, 2024, correct?

8 A Yes.

9 Q And again you've asked here in this yellow
10 highlighted text, The extension of any status or
11 limitation -- excuse me, strike that. Extension of
12 any status of limitation related to this case as we
13 are reaching one year since WWO lost three of our
14 bolts in Peru, correct?

15 A Yes, that's correct.

16 Q Okay. And did you ever receive any
17 writing from any of -- sorry, strike that, please.
18 In response to either of these emails that you sent
19 or any other communication you sent did Ms. Umania
20 ever agree to extend that one year limit for you?

21 A No, she never agreed to extend.

22 Q Okay.

23 A She said they were reviewing it.

24 Q Okay. I'm going to share any screen
25 again. And we are still on Exhibit 9 if you can see

1 this?

2 A Yes.

3 Q So this is the same chain of emails with
4 you and Ms. Umania and here is an email from
5 Karen Umania to you on August 5th, 2024, correct?

6 A Yes.

7 Q And here I've highlighted some text which
8 says, Please take into consideration that this is
9 going outside all regular process that should have
10 been followed from your side. Prior to any
11 conversation settlements should have taken place
12 first in between the consignee and the final
13 customers.

14 They should have used their
15 insurances, in parenthesis, that is the norm on
16 shipping to have the cargo insured, end parenthesis,
17 and then subrogated the rights to claim against you,
18 then you should have settled with them, parenthesis,
19 normally through your insurance, end parenthesis,
20 and then come back to us with the claim to follow
21 the correct chain of contract, is that correct?

22 A Yeah, I -- I'm -- yes, I'm reading, yes.

23 Q Okay. Did you ever do any of those things
24 that Ms. Umania suggested about following the
25 correct chain of contract?

1 A No, but I think it's explained on my next
2 email right after that one.

3 Q You can just answer the question I ask.
4 Thank you.

5 A Okay.

6 Q Did you ever receive any writing from any
7 of the cargo owners assigning their rights to
8 Worldwide Logistics?

9 A No.

10 Q Did you ever receive any written
11 assignment of rights from any of the consignees?

12 A Written assignment, no.

13 Q No?

14 A Not from the final consignees.

15 Q Okay. Did you or any of your customers
16 apply to any authority for the release or return of
17 the cargo?

18 A I -- I did and my-- my customers tried to
19 approach the authorities in Pesca, Peru. The -- not
20 my customers, the end customers. I didn't share
21 what they received, if anything, from the
22 authorities in Peru. I don't have direct
23 communication with the ultimate consignees and I
24 asked Cargo Land because I believe it was Cargo Land
25 customers and she said that she had nothing to share

1 with me.

2 Q So how did you find out that Cargo Land's
3 customers contacted the Pesca authorities?

4 A Oh, that was -- that was told -- Cargo
5 Land told me that their customers are trying to
6 obtain information on their own and that's as much
7 as I know. I don't know what they found, if they
8 found anything. I -- they send me pictures and they
9 send me once a picture of the boats inside a
10 facility. I share it with you folks in one of the
11 production documents and that was it.

12 Q Did you or any of your customers file any
13 claim or legal action other than this one seeking
14 the release or return of the cargo?

15 A I -- seeking the release of the cargo I
16 didn't. I know Andy of Miami didn't or Cargo Land
17 neither. Now what the final customers did on their
18 own I -- they didn't share it with me.

19 Q Okay. And then it's safe to say that
20 neither you or your customers filed any claim or
21 legal action for compensation for the value of the
22 cargo either, is that correct?

23 A Not my customers. My direct customers?

24 Q Correct.

25 A I don't know what happened with my

1 customers' customers, so not the consignees, I'm not
2 aware of any process. As far as me, Andy of Miami
3 and Cargo Land, no, they didn't file any claim.

4 Q Okay. Do you know of any other claims at
5 all related to this subject loss?

6 A No. I was -- in one of Karen Umania's
7 emails she mentioned that there was a process
8 against the -- from one of the end customers with
9 the Wallenius agent in Peru and I've never learned
10 anything about it, but from Karen Umania.

11 Q Okay. You filed this FMC proceeding with
12 a complaint alleging that Wallenius mishandled three
13 units shipped aboard the Morning lady, correct?

14 A That's correct.

15 Q Okay. I'm going to share my screen and
16 this -- which you should now be able to see I hope.
17 Can you see the -- the exhibit on my screen?

18 A Yes.

19 Q Sorry, couldn't hear you?

20 A Yes.

21 Q Yes, okay. So this is Exhibit 10 and this
22 is the complaint that you filed in this proceeding,
23 correct, to commence this proceeding?

24 (Lopez Exhibit 10 was marked for
25 identification purposes.)

1 A Yes.

2 Q (By Ms. Dunlop) Okay. Then I just wanted
3 to clarify the dates here because this is your
4 signature at the bottom of the complaint and it's
5 dated June 25th, 2025 --

6 A Yes.

7 Q -- but here in the verification it's dated
8 the 21st of July 2025 and then at the top here when
9 it was received by the FMC the received date is
10 marked July 9th, 2025, so can you just clarify
11 whether this June 25th date is accurate or should
12 that have been July 25th?

13 A That was probably an oversight of mine,
14 yeah.

15 Q Okay. So you drafted and filed this
16 complaint in July of 2025, is that correct? If you
17 don't recall you can say you don't recall.

18 A I don't recall an exact date.

19 Q Okay. Okay. And you prepared this
20 complaint by yourself, is that correct?

21 A Yes.

22 Q And so no one helped you with anything to
23 do with the preparation of this complaint, is that
24 correct?

25 A No one helped me, no.

1 Q Okay. And your allegation in this claim
2 is based entirely on the fact that the cargo was
3 seized -- excuse me, seized by Peruvian customs,
4 discharged in Peru such that it never arrived in
5 Chile, is that correct?

6 A Nondelivery, yes.

7 Q Do you have any firsthand knowledge of
8 what the Peruvian customs did or why they did it?

9 A Yes.

10 Q You have firsthand knowledge, can you
11 explain that, please?

12 A Yes, I had a letter from Wallenius that
13 was -- that was sent to us by -- by Wallenius
14 stating that there was an error in the manifest,
15 there was an omission in the manifest and that
16 caused the seizure of the cargo.

17 Q So the only knowledge you have about the
18 seizure of the cargo is the knowledge that you
19 learned from Wallenius, is that correct?

20 A Yes, that's correct.

21 Q Okay. Okay. We're going to go down to
22 Paragraph 10, sorry, Paragraph 11 of Exhibit 10 of
23 your complaint. Here you said that complaint --
24 Complainant alleges that the Respondent's failure to
25 submit required manifest documentation and its

1 subsequent refusal to remedy the situation
2 constitute an unjust and unreasonable practice in
3 violation of 406 USC Section 41102.C, correct?

4 A Correct. Correct.

5 Q And then in Paragraph 12 you state that
6 the Complainant and its customers have incurred
7 substantial financial harm including loss of cargo,
8 reputational damage and commercial disruption.
9 Until today we've only been advised via email by the
10 carrier's attorney that the three boats have been
11 confiscated by Peruvian authorities, correct?

12 A Correct.

13 Q Okay. Are you aware that this law -- this
14 statute that you cited, 406 USC Section 41102.C,
15 applies only to a practice which means conduct that
16 is normal customary and continuous?

17 A Yes, we understand this code from the FMC
18 as -- in this incident as mishandling of our cargo.

19 Q Have you ever read 406CFR Section 545.4?

20 A 545.4, no.

21 Q Okay. That section defines practice as
22 used in 41102C as conduct that is uniform habitual
23 and continuous, were you aware of that?

24 A No. Did I make a reference of that code?

25 Q No.

1 A Okay.

2 Q You have not identified any regulations
3 policy or written procedure of Wallenius that states
4 that cargo may be manifested incorrectly, have you?

5 A I'm sorry, I -- I thought you were reading
6 something. Are you asking me something?

7 Q Yes, I can repeat it.

8 A Yes, please.

9 Q Have you identified any regulations or
10 policy or procedure of Wallenius which states that
11 they manifest cargo incorrectly?

12 A They didn't manifest cargo, that's what it
13 says on their communication.

14 Q So if you can just answer the question
15 that I asked. Are you aware of any Wallenius
16 procedure or practice meaning a consistent -- strike
17 that. Are you aware of any policy of Wallenius
18 which states that cargo may be manifested
19 incorrectly?

20 A No.

21 Q No. Okay. Are you -- have you identified
22 any Wallenius employee who told you that Wallenius
23 regularly fails to manifest cargo?

24 A No.

25 Q Are you aware of any prior instances

1 before this subject voyage of the Morning Lady where
2 Wallenius failed to manifest cargo?

3 A No.

4 Q Are you aware of any subsequent incidents
5 since this subject voyage of the Morning Lady where
6 Wallenius failed to manifest cargo?

7 A No.

8 Q And Wallenius informed you in its
9 discovery responses that there is one other shipment
10 on the same voyage that was seized in Peru due to
11 manifest error, correct?

12 A Yes.

13 Q Okay. I'm going to show Exhibit 11 and
14 these are the responses that you received to your
15 interrogatories, correct?

16 A Yes.

17 (Lopez Exhibit 11 was marked for
18 identification purposes.)

19 Q (By Ms. Dunlop) So you're familiar with
20 this document, correct?

21 A Yes.

22 Q I'm sorry, did you say yes?

23 A Yes.

24 Q Okay. So here in Wallenius's response to
25 your Interrogatory Number Six we say, A shipment of

1 machinery on the subject voyage was detained in
2 Peru, correct?

3 A Yes.

4 Q I'm going to now move to Exhibit 12.

5 (Lopez Exhibit 12 was marked for
6 identification purposes.)

7 Q (By Ms. Dunlop) And this is the
8 un-freighted manifest. It's dated January 2nd, 2024
9 for the Morning Lady voyage number EC311-MLY,
10 correct?

11 A Correct.

12 Q And you're familiar with this document,
13 correct?

14 A I've never seen this document until
15 yesterday.

16 Q Okay. This document was produced to you
17 in discovery, but I'll represent to you that this is
18 a manifest of the cargo on the Morning Lady.

19 A I'm sorry, you said it was given to me in
20 discovery?

21 Q It was, yes.

22 A I -- I -- we might have to check it
23 because I've never -- I've never seen a manifest.

24 Q Okay. Your only job here is to answer the
25 questions that I ask, okay?

1 A Oh, but you asked me if I had seen it.

2 Q That's fine and you said no and that's
3 fine.

4 A Okay.

5 Q Okay. So this is the un-freighted
6 manifest for the Morning lady. If we scroll to
7 Page Three of the document it shows bill of lading
8 Number US2387238, correct?

9 A Okay. Yes.

10 Q And then here highlighted it shows that
11 the item shipped on that bill of lading was a used
12 2017 Volvo excavator, correct?

13 A Correct.

14 Q Okay. Now, I will represent to you that
15 on this manifest which was dated January 2nd, 2024
16 the three boats that are the subject of this claim
17 do not appear, okay?

18 A Okay.

19 Q I will now move to Exhibit 13. This is an
20 un-freighted manifest dated January 26th, 2024, do
21 you see that?

22 (Lopez Exhibit 13 was marked for
23 identification purposes.)

24 A Yes.

25 Q (By Ms. Dunlop) Okay. And this manifest

1 is for the Morning Lady with the same voyage number,
2 EC311-MLY, correct?

3 A Correct.

4 Q So I'll represent to you that this is the
5 manifest that was issued after the errors in the
6 first manifest were identified. Now here on
7 Page Three of that document it states
8 Bill of Lading Number US2387238 and it shows the
9 shipment of one used Volvo excavator, correct?

10 A Correct.

11 Q Okay. So here in this highlighted yellow
12 paragraph there's additional text which if I go back
13 to Exhibit 12, the previous manifest, it does not
14 appear here on Exhibit 12 that additional block of
15 text underneath the excavator, correct?

16 A Correct.

17 Q Okay. So now we're back on Exhibit 13.
18 This additional block of text that appears on
19 Exhibit 13 which is the manifest dated January 26th
20 states that the merchant acknowledges and accepts
21 additional local charges linked to the cargo
22 delivery, agreed?

23 A I -- I -- I hear you, yes.

24 Q You see -- you see the words that I'm
25 reading, correct?

1 A Yes.

2 Q Okay. All right. Now if we go down to
3 Page Four of this document --

4 A Okay.

5 Q -- you see
6 US Bill of Lading Number 2387246 and that is for the
7 shipment of one used 2011 Sea Ray model Sun Dancer
8 on 2023 trailer Magic, correct?

9 A Correct.

10 Q Okay. The next entry on that same page is
11 for Bill of Lading Number US238773 and that is for
12 the shipment of one 2020 used boat Sea Ray model
13 SLX230 on used trailer, correct?

14 A Correct.

15 Q Okay. And if I scroll to Page Seven of
16 the document highlighted here you see
17 Bill of Lading Number US2387995 and that is for the
18 shipment of one used 2021 Access T22 boat with
19 Malibu engine on Malibu tandem axle trailer,
20 correct?

21 A Correct.

22 Q Okay. So if we're looking at this
23 Exhibit 13 which is the newer manifest dated
24 January 26th, 2024 and this Exhibit 12 which is the
25 older manifest dated January 2nd, 2024 you can see

1 that the three boats that are the subject of this
2 claim were added to the new manifest, correct?

3 A I see, yes.

4 Q Okay. The other error identified on that
5 manifest was not that something had been left off
6 the manifest all together, right? Here when I read
7 the excavator entry to you the other error was
8 simply that it needed further information on whether
9 the merchant allowed fees, is that correct?

10 A Yes.

11 Q Okay. Stop sharing. So then you agree
12 that even on the same voyage we're talking about a
13 manifest error, the errors were different, one was
14 that the excavator needed more information and the
15 other was the three boats that were left off the
16 manifest, correct?

17 A That's what I see, yeah.

18 Q Okay. And as we sit here today with the
19 exception of the other shipment that we just went
20 over, the excavator, can you point to a single other
21 instance where Wallenius incorrectly manifested
22 cargo?

23 A Not for my shipment. I wouldn't know
24 anything else.

25 Q Okay. So then your allegation for this

1 claim is based solely on what happened to your three
2 shipments, correct?

3 A Yes.

4 Q And those three shipments were all part of
5 the same voyage on the same manifest, correct?

6 A Yes.

7 Q Do you have any evidence of any kind that
8 would suggest that Wallenius has a history of making
9 manifest errors?

10 A No, I don't have any.

11 Q Do you have any evidence that Wallenius's
12 Peruvian agent had any history of manifest errors?

13 A I had never had contact with the agent, so
14 I -- I wouldn't know.

15 Q Okay. So you filed this complaint on or
16 around June/July 2025, right?

17 A Correct.

18 Q Okay. And that was more than one year
19 after the cargo was discharged in Peru, correct?

20 A Yes, about 18 months.

21 Q And more than one year after it should
22 have been delivered in Chile, correct?

23 A Yes.

24 Q Did you file any other action related to
25 the shipment in any court or with any arbitral

1 tribunal?

2 A No.

3 Q And you didn't obtain any extension of the
4 time to file any suit?

5 A No.

6 Q Okay. Now's a good time to take a break
7 if you'd like. Would you like ten minutes, 15
8 minutes?

9 A Oh, okay. Are we holding for lunch? Are
10 we doing lunch? If not I can --

11 Q If you'd like to have lunch I -- I'm
12 saying now is a great time in the deposition to take
13 a break, it's noon. If you'd like lunch we can do a
14 20 minute break. It's up to you. What's
15 comfortable for you.

16 A Okay. All right. I can continue if you
17 like.

18 Q Okay. Well, let's just take a brief break
19 them, so let's do ten minutes, how's that?

20 A Okay.

21 Q Okay. Thank you.

22 MS. DUNLOP: We can go off the record.

23 Thank you.

24 (There was a brief recess.)

25 MS. DUNLOP: Okay. Madam Court Reporter,

1 we're ready to go back on the record if you
2 are.

3 Q (By Ms. Dunlop) Okay. Mr. Lopez, are you
4 ready to proceed?

5 A Yes.

6 Q All right. So you're seeking damages in
7 these proceedings, correct?

8 A Yes.

9 Q Okay. And those damages that you're
10 seeking are on behalf of Worldwide Logistics and its
11 customers, is that correct?

12 A On behalf of, yes, my customers, yes.

13 Q Okay. And how did you calculate damages?

14 A I requested all the receipts of every
15 single expense the customers had for each boat and
16 the logistics expense that they had to transport the
17 boat before delivery at the port, so I basically
18 just added all the receipts and that's how it was
19 calculated.

20 Q So your claim for damages are the damages
21 that your customers suffered, is that correct?

22 A Yes. Yes. And there is a -- there's an
23 addition in there as well that is for credibility
24 damage and -- and business disruption to me.

25 Q Okay. I'm going to share my screen again.

1 Can you see this here, Exhibit 14?

2 A Yes.

3 (Lopez Exhibit 14 was marked for
4 identification purposes.)

5 Q (By Ms. Dunlop) Okay. So this is an
6 invoice from World -- excuse me, World Boats Zuniga
7 dated the 7th of December 2023, is that correct?

8 A Yes. That's what it says, yes.

9 Q And invoice is number is 151040, correct?

10 A Correct.

11 Q Okay. And the description here says a
12 used boat Sea Ray model Sun Dancer 2011 with
13 accessories on a used trailer Magic Tilt, correct?

14 A Correct.

15 Q And the total amount here due to World
16 Boats Zuniga is \$31,500, correct?

17 A That's what it says, yes.

18 Q Yeah, and the customer here listed is
19 Eduardo Reyes, correct?

20 A Correct.

21 Q And then here highlighted in yellow are
22 wire transfer instructions to pay World Boats Zuniga
23 for this invoice, correct?

24 A Correct.

25 Q Okay. I'm going to show you now

1 Exhibit 15. This is a confirmation of payment
2 showing payment on December 5th, 2023 to World Boats
3 Zuniga in the amount of \$63,000, correct?

4 (Lopez Exhibit 15 was marked for
5 identification purposes.)

6 A Yes, correct.

7 Q (By Ms. Dunlop) Okay. And can you
8 explain, if you know, how these two documents are
9 related, Exhibits 14 and 15?

10 A Yeah, the invoice that you're presenting
11 to me is that the invoice that I gave you in
12 discovery or is it one provided to you by Wallenius?

13 Q If you can just do your best to explain,
14 if you can, how you -- how these two documents are
15 related.

16 A Well, it's -- I need to know exactly where
17 that invoice is coming from to answer your question.

18 Q So have you not seen this invoice before?

19 A I -- I have seen the invoice before, yes,
20 but I -- I'm not sure -- if I don't look at my
21 records I'm not sure if that will be the final
22 invoice.

23 Q Okay. Do you want a minute to locate the
24 final invoice?

25 A Yes, can I have it?

1 Q That would be great, yes. Thank you.

2 A Just a second. I'm sorry, now this is
3 acting up on me.

4 Q That's okay. Take your time. Okay. If
5 you're unable to locate the invoice you're looking
6 for that's okay, you can provide it to us
7 subsequently.

8 A Okay. I -- I have it now.

9 Q Oh, you have it. Okay.

10 A Yes. Yes. I --

11 Q And is -- can you --

12 A It was -- okay. Now -- now I can't read
13 your total. Would you please zoom in -- zoom it in?

14 Q Absolutely.

15 A Okay. Yeah.

16 Q Okay. So can you explain what document
17 you are looking at, please?

18 A I am looking to Bate number 0049.

19 Q And is that the same invoice I have here
20 marked as Exhibit 14 or is it different?

21 A No, it's for the same piece of cargo, but
22 it doesn't have the same total.

23 Q Okay. What is the total on your
24 Invoice Bates 0049?

25 A On Bates 0049 the total is \$65,600.

1 Q Okay. And what is the invoice number that
2 you are looking at?

3 A I'm looking at Invoice Number 151040. I
4 delivered this document to you.

5 Q Okay. And that is the same invoice number
6 that I have here on Exhibit 14, correct, 151040?

7 A Yes.

8 Q Okay. And is that document that you're
9 looking at, Bates 0049, is that invoice dated
10 December 7, 2023 as well?

11 A No, actually this reads
12 December 5th, 2023.

13 Q But it is for the same boat which is the
14 used boat Sea Ray model Sun Dancer, year 2011 on a
15 used Magic tilt trailer, correct?

16 A That's correct.

17 Q Okay. And is the customer the same as the
18 customer I have here on Exhibit 14, Eduardo Reyes?

19 A Yes.

20 Q Okay. Do you have any idea why there
21 would be two invoices with the same invoice number
22 to the same customer from the same seller which is
23 World Boats Zuniga for the same boat with different
24 amounts?

25 A Yes. I originally was requested invoices

1 from Wallenius I believe it was the day of or the
2 day after the boats were seized in Peru, asked for
3 invoices documentation. I requested the invoices
4 also from my customers. They send them to me and I
5 send them to Wallenius.

6 Now, later on when we were having
7 talks with Wallenius regarding a commercial proposal
8 or some sort of commercial resolution it was asked
9 for me to deliver invoices. I asked the customers
10 if I had everything that I had to have to present it
11 to the carrier because I didn't want anything left
12 out because they were not going to be able to put
13 anything else once I handed in all the -- all the
14 receipts that I was supposed to have.

15 So they send me a new invoice and
16 this happened perhaps about two months after it
17 occurred when we started talk of about a commercial
18 resolution and they came with this invoice and --
19 and, yeah, that's it, this is the one that I use.
20 This is the -- they told me that this was the
21 correct value. I grabbed the invoice, I send it
22 over to Wallenius.

23 Q So your customer stated that the correct
24 value was the higher value of \$65,600 which appears
25 in your document Bates marked 0049, is that correct?

1 A Yes, that's correct.

2 Q And do you have any idea why there are two
3 different values for the same boat?

4 A I'm not involved in that process and I
5 don't know what -- what is the transaction between
6 Commercial Global who is the one that sells the
7 boats and the end customers. I am not involved in
8 that transaction.

9 Q Okay. And did you calculate any of your
10 alleged damages for this claim based on either of
11 those two documents, Bates 0049 or this Exhibit 14
12 that I'm showing?

13 A I'm sorry, ask that question again.

14 Q Did you use either this Exhibit 14 that
15 I'm showing on my screen or the document you have in
16 front of you Bates marked 0049 in the calculation of
17 your damages that you alleged in this claim?

18 A My damages or the full amount of the
19 damages?

20 Q Thank you for clarifying. Yes, the full
21 amount of damages that you claimed in --

22 A Yes.

23 Q -- this proceeding.

24 A Yes. In the full amount, yes. I
25 calculated all the receipts that I had from the

1 customers together.

2 Q And so did you use the amount marked in
3 the document marked 0049 to calculate the damages?

4 A Yes.

5 Q Okay. Thank you. Okay.

6 A I'm sorry, I don't -- I'm not sure if
7 that's the whole amount for this particular boat
8 because there were transportation expenses also,
9 bill of lading expenses as well. I believe I
10 provided all of that.

11 Q That's fine. Thank you.

12 A Okay.

13 Q Okay. We're going to move to Exhibit 16.
14 You can still see my screen, correct?

15 (Lopez Exhibit 16 was marked for
16 identification purposes.)

17 A Yes. Yes. Yes. Yes. I'm looking at
18 your, what is it called, your -- your production
19 index that I have, I'm sorry.

20 Q (By Ms. Dunlop) That's okay. Okay. So
21 this is an invoice from International Made In USA
22 LLC to Sandra Zamarano Arosco which is dated
23 December 13, 2023 correct?

24 A Correct.

25 Q And this invoice number here is INV0273,

1 correct?

2 A Correct.

3 Q And the description here is in Spanish,
4 but it's for the Sea Ray model 230 SLX boat on its
5 trailer, correct?

6 A That's correct.

7 Q Okay. And the full amount for the balance
8 due for this invoice is \$41,500, correct?

9 A Correct.

10 Q Okay. We're going to move to Exhibit 17
11 and this appears to be almost the same invoice which
12 is from International Made In USA LLC and
13 Sandra Zamarano Arosco. The invoice number is 0273.
14 It is the same description here for used model Sea
15 Ray SL -- sorry, 230 SLX boat on its trailer,
16 correct?

17 (Lopez Exhibit 17 was marked for
18 identification purposes.)

19 A Correct.

20 Q (By Ms. Dunlop) And so it's the same
21 invoice number with the same date and the same item
22 except this balance here on Exhibit 17 is \$79,500,
23 correct?

24 A Correct. Same scenario.

25 Q So the explanation you gave for the

1 difference between the Exhibit 14 and your
2 Bates number 0049 is the same explanation for the
3 difference between these two sums and these two
4 invoices, is that correct?

5 A That is correct, but that -- that's
6 exhibit -- I'm sorry, Bates number 0052 if I'm -- if
7 I'm correct.

8 Q Okay. Well, just for purposes of the
9 record we'll just use these exhibits that I've
10 submitted unless you have a different one which was
11 helpful, so thank you for that.

12 Okay. And then when you were
13 calculating the damages to allege in this proceeding
14 did you use this figure here, the \$79,500 from
15 Exhibit 17?

16 A Yes.

17 Q Okay. And you used these larger figures
18 from this Exhibit 17 and from your Bates 0049
19 because the client told you those were the correct
20 figures, is that accurate?

21 A Right. And then I ask to back it up and
22 they showed me the bank transfers that they received
23 of the payments and -- and I submitted that too.

24 Q Okay. We are going to move to Exhibit 18
25 now.

1 (Lopez Exhibit 18 was marked for
2 identification purposes.)

3 Q (By Ms. Dunlop) So this is an invoice from
4 Andy of Miami, Inc. The date is November 29, 2023
5 and it's Invoice 3394, correct?

6 A Yes.

7 Q Okay. And the shipment -- I'm sorry, the
8 sale here is for one 2021 Access boat with Malibu
9 engine on a Malibu tandem axle trailer, correct?

10 A Correct.

11 Q And a total amount here is \$51,100 due,
12 correct?

13 A Correct.

14 Q Okay. And Exhibit 19 we have an almost
15 identical invoice from Andy Of Miami dated
16 November 29th, 2023 Invoice Number 3394, correct?

17 (Lopez Exhibit 19 was marked for
18 identification purposes.)

19 A Correct.

20 Q (By Ms. Dunlop) Okay. And it is for an
21 Access T22 boat with Malibu engine on a Malibu axle
22 trailer, correct?

23 A Correct.

24 Q And this amount here total due is \$73,445,
25 correct?

1 A That's correct.

2 Q And then is it safe to say that the
3 explanation is the same here as it was in the
4 previous two sets of invoices that we showed?

5 A Yes, ma'am.

6 Q And so you calculated your damages that
7 you allege in this action based on this figure,
8 \$73,445, correct?

9 A Yes. I used the customer's receipts, yes.

10 Q Okay. Thank you. Did Worldwide Logistics
11 suffer any financial loss as a result of the subject
12 shipment?

13 A No, it was the -- basically I lost the
14 business of Andy of Miami for almost two years. And
15 as I mentioned when you ask it was a steady business
16 of at least a unit a month and I don't think I
17 requested more than basically that and -- and the
18 business loss from Cargo Land which I said it was
19 four or five units a year --

20 Q Okay.

21 A -- for the year term that they didn't give
22 me any cargo.

23 Q Okay.

24 A But I believe that's the extent of it that
25 I requested.

1 Q Okay. And did Worldwide Logistics
2 purchase any of the three boats or make any
3 financial contribution to any of the three boats?

4 A No.

5 Q No. And did Worldwide Logistics reimburse
6 any customer for the value of the boats?

7 A No.

8 Q Did Worldwide Logistics refund the freight
9 or logistic charges to any of its customers related
10 to these shipments?

11 A No.

12 Q Did Worldwide Logistics pay any charges in
13 Chile relating to these shipments?

14 A Yeah, no, it was -- we just extended
15 payment to Wallenius bill of lading for Wallenius
16 bill of lading.

17 Q So the only payment that you made with
18 respect to these three shipments was the payment to
19 Wallenius for the -- the shipments?

20 A Yes, that's correct.

21 Q And did you collect payment from your
22 customers Cargo Land and Andy of Miami for those
23 amounts that you paid to Wallenius?

24 A Yes, that's correct.

25 Q So Worldwide Logistics didn't suffer any

1 quantifiable out of pocket loss as a result of these
2 shipments, is that correct?

3 A That is correct.

4 Q Do you have any documents showing that
5 Worldwide Logistics lost money as a result of these
6 shipments?

7 A No, I don't have documents that will show
8 you that.

9 Q Okay. Do you have any documents showing
10 that Worldwide lost customer contracts as a result
11 of these lost shipments?

12 A No documents.

13 Q Do you have any documents showing that
14 Worldwide lost revenue as a result of these subject
15 shipments?

16 A No, I don't have documents. My reports
17 will only show that Andy of Miami is no longer
18 shipping with me for the period that I have
19 mentioned.

20 Q Uh-huh. And can you remind me when did
21 Andy of Miami begin shipping with you again?

22 A Just three or four months ago.

23 Q Okay. Thank you. Do you have any
24 documents showing financial loss from reputational
25 harm to Worldwide?

1 A Do I have -- I'm sorry, say --

2 Q I'll repeat, yes.

3 A Please.

4 Q Do you have any documents which show any
5 financial loss to Worldwide as a result of
6 reputational harm from these shipments?

7 A Yeah. No, I don't have any written
8 documents because I don't believe that's how
9 reputational damage is done on paper.

10 Q Okay. Do you accept that any claim for
11 the loss of cargo is subject to a one year time bar?

12 A No.

13 Q Okay. Do you agree that any claim for the
14 loss of cargo is subject to a \$500 package
15 limitation?

16 A No.

17 Q Okay. And you said that you were aware of
18 a second proceeding in Peru and the only way that
19 you became wear of that was because it was mentioned
20 by Karen Umania, is that correct?

21 A That is correct.

22 Q Do you have any other details or awareness
23 with respect to that proceeding?

24 A No, I don't.

25 Q Okay.

1 MS. DUNLOP: All right. I'm going to take
2 a brief five minute break just to make sure I
3 didn't forget anything and then we will wrap
4 up, so we can go off the record.

5 THE WITNESS: Okay.

6 (There was a brief recess.)

7 MS. DUNLOP: All right. So subject to any
8 further questions based on the production of
9 the documents that we've requested we have no
10 further questions at this time, so thank you
11 very much for your participation, Mr. Lopez, we
12 appreciate it. And thank you, Madam Court
13 Reporter.

14 THE WITNESS: Thank you. Thank you very
15 much.

16 MS. DUNLOP: We can go off record.

17 THE COURT REPORTER: Are you going to be
18 ordering?

19 MS. DUNLOP: Yes, we'd like to take a
20 copy, please.

21 (The deposition was concluded at 12:40
22 p.m.)
23
24
25

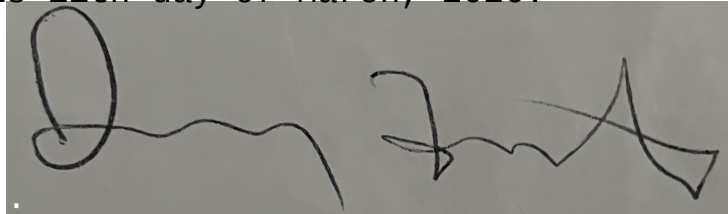
CERTIFICATE OF OATH

THE STATE OF FLORIDA)

COUNTY OF MIAMI-DADE)

I, Jonna Foster, Court Reporter, Notary Public,
State of Florida, certify that JEAN LOPEZ,
personally appeared before me on the 25th day of
February, 2026, and was duly sworn.

Signed this 11th day of March, 2026.

A handwritten signature in black ink, appearing to read 'Jonna Foster', is written over a grey rectangular background.

JONNA FOSTER, REPORTER
Notary Public, State of Florida
Commission No. HH 529771
Expires: July 15, 2028

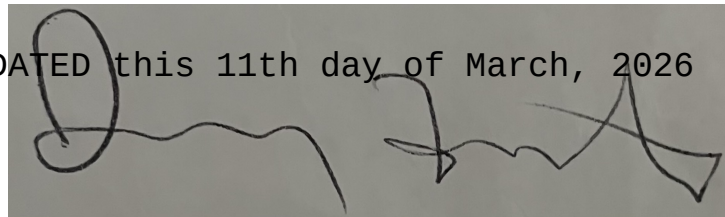
CERTIFICATE OF REPORTER

STATE OF FLORIDA)
COUNTY OF MIAMI-DADE)

I, JONNA FOSTER, Reporter, certify that I was authorized to and did stenographically report the deposition of JEAN LOPEZ, pages 1 through 84; that a review of the transcript was requested; and that the transcript is a true record of my stenographic notes.

I further certify that I am not a relative, attorney or counsel of any of the parties, nor am I a relative or employee of any of the parties' attorneys or counsel connected with the action, nor am I financially interested in the action.

DATED this 11th day of March, 2026

A handwritten signature in black ink, appearing to read "Jonna Foster", is written over a grey rectangular background.

JONNA FOSTER, REPORTER

WITNESS NOTIFICATION LETTER

DATE: March 11th, 2026

TO: MR. JEAN LOPEZ
C/O WORLDWIDE NEXUS LOGISTICS, LLC
8200 NW 41st Street, Suite 200
Miami, FL 33166

IN RE: WORLDWIDE NEXUS VS. WALLENIOUS WILHELMSEN
CASE NO: Docket No. 25-15
Deposition taken on February 25, 2026
U.S. Legal Support Job No. 7064632

The transcript of the above proceeding is now available for your review.

Please call to schedule an appointment between the hours of 9:00 a.m. and 4:00 p.m., Monday through Friday, at a U.S. Legal Support office located nearest you.

If you are a party in this action and your attorney has ordered a copy of this transcript, you may wish to read his copy of the transcript. In that event, please execute the Errata Sheet, found at the back of the transcript, and return it to us for distribution. A self addressed envelope is enclosed for your convenience.

Please complete your review as soon as possible.

Very truly yours,

JONNA FOSTER, Court Reporter
U.S. Legal Support, Inc.
One Southeast Third Avenue
Suite 1250
Miami, Florida 33131
(305)373-8404

CC via transcript:
Veronica Dunlop, Esq.

E R R A T A S H E E T

DO NOT WRITE ON TRANSCRIPT - ENTER CHANGES HERE

IN RE: Worldwide Nexus vs. Wallenius
Jean Lopez
Wednesday, February 25, 2026
U.S. LEGAL JOB NO. 7064362

PAGE NO.	LINE NO.	CHANGE	REASON
10	9-13	"The consultation occurred on June 3, 2025 by Zoom."	Correction of Date
15	1-3	"They encouraged me to pursue a resolution, but did not direct or authorize the FMC proceeding."	Clarification

Under penalties of perjury, I declare that I have
read the foregoing document and that the facts
stated in it are true.

04/01/2026

Date

Jean Lopez

EXHIBIT 3

1. DEFINITIONS

- a. "Carrier" means Wallenius Wilhelmsen Ocean AS, vessels used in the carriage, their owners, managers and operators.
- b. "Carriage" means the whole or any part of the operations and services undertaken by the Carrier in respect of the Goods covered by this Bill of Lading.
- c. "Combined Transport" means a Carriage for which the Carrier agrees to be responsible from the "Place of Receipt" box on the face of this Bill of Lading to the place identified in the "Place of Delivery" box on the face of this Bill of Lading.
- d. "Container" includes any container, trailer, transportable tank, flat or pallet, packaging or any similar article used to consolidate cargo and any ancillary equipment.
- e. "Customary Freight Unit" means each unit on which freight is charged.
- f. "Freight Unit" means each physical unit, car, truck or piece of Goods not shipped in a Package or Container, irrespective of weight or measurement.
- g. "Goods" mean the cargo described in this Bill of Lading whether it is carried on deck or under deck. If the Containers, equipment or other packaging are not furnished by the Carrier, those Containers, equipment and other packaging are also "Goods". No cargo is to be shipped inside vehicles or other cargo unless such additional cargo is itemized on the front page of this Bill of Lading and extra freight is paid.
- h. "Merchant" includes the shipper, consignee, notify party, receiver of the Goods, holder of this Bill of Lading, and any person, including any corporation, company, or other legal entity, owning the Goods or entitled to the possession of the Goods or acting on behalf of the Goods or any such entity. Their obligations are joint and several.
- i. "Package" means the largest means used to prepare cargo for transportation, including but not limited to, a skid, pallet, Container, bolster, trailer, crate or carton.
- j. "Port to Port Shipment" means a shipment only from one port identified in the "Port of Loading" box on the face of this Bill of Lading to the port identified in the "Port of Discharge" box on the face of this Bill of Lading. The Carrier only has custody, control, and responsibility for the Goods during the Port to Port carriage.
- k. "Sanctions" means any law, regulation, statute, order (including Executive Orders), restriction or prohibition concerning trade, economic or financial sanctions, embargoes or other restrictive measures implemented, adopted, imposed, administered, enacted or enforced by the United Nations, the European Union, the United Kingdom, the United States or any other government authority including but not limited to any primary or secondary sanctions or any "specially designated nationals" or "blocked persons" lists, or any equivalent lists (collectively "Sanction Lists") maintained and imposed by the relevant bodies and organizations of the foregoing.
- l. "Subcontractor" or a "Performing Party" includes any independent contractor or other entity employed directly or indirectly by the Carrier in performance of the Carriage or whose services or equipment have been used for the Carriage.
- m. "Third Party On-Carriage" means the transfer of the Goods and the responsibility and liability for the Goods from Carrier to another carrier.

2. THIRD PARTY ON-CARRIAGE

The Merchant and the Carrier may indicate, on the face of this Bill of Lading, that the Goods will be on-carried beyond the Port of Discharge or Place of Delivery by another carrier. The Carrier issuing this Bill of Lading is not responsible for such on-carriage and is not liable for loss or damage of or to the Goods during on-carriage. If the Carrier arranges such on-carriage, it does so only as agent of the Merchant. The Carrier's duties and responsibilities shall be deemed completed at the Port of Discharge or Place of Delivery indicated on the face of this Bill of Lading as if Carrier had delivered the Goods according to Clause 10.

3. SCOPE OF THIS BILL OF LADING

This Bill of Lading evidences the contract of carriage from the time the Carrier accepts complete custody and control of the Goods at the place of receipt or the port of loading described on the face of this Bill of Lading until the Carrier releases custody or control of the Goods at the port of discharge or the place of delivery described on the face of this Bill of Lading. The terms and conditions of this Bill of Lading apply during the Carriage described in this Bill of Lading on all modes of transportation and storage, including before the Goods are loaded on board any means of transportation, and after the Goods are discharged from any means of transportation as well as while the Goods are on board any means of transportation.

4. INSPECTION OF GOODS CLAUSE

The Carrier shall be entitled, but under no obligation, to open and/or scan any Package at any time and to inspect the contents. If it appears at any time that the Goods cannot safely or properly be carried or carried further, either at all or without incurring any additional expense or taking any measures in relation to the Package or the Goods, the Carrier may without notice to the Merchant (but as his agent only) take any measures and/or incur any reasonable additional expense including but not limited to the measures or expense to carry or to continue the Carriage thereof, and/or to sell or dispose of the Goods and/or to abandon the Carriage and/or to store them ashore or afloat, under cover or in the open, at any place, whichever the Carrier in his absolute discretion considers most appropriate. Such sale, disposal, abandonment or storage shall be deemed to constitute due delivery under this Bill of Lading. The Merchant shall indemnify the Carrier against any reasonable additional expense so incurred. The Carrier in exercising the liberties contained in this clause shall not be under any obligation to take any particular measures and shall not be liable for any loss, delay or damage howsoever arising from any action or lack of action under this clause.

5. DESCRIPTION OF GOODS AND MERCHANT'S RESPONSIBILITY

- a. The Merchant warrants to the Carrier that the particulars relating to the Goods and the Merchant as set out on the face of this Bill of Lading have been checked by the Merchant, and that such particulars and any other particulars furnished by or on behalf of the Merchant, are adequate and correct. The Merchant also warrants that the Goods are lawful goods, and contain no contraband, drugs or other illegal substances or stowaways and that the Goods will not cause any loss, damage or expense to the Carrier, or to any other cargo.
- b. The Merchant shall be liable for and shall indemnify the Carrier against all loss, damage, delay, fines, attorney fees and/or expenses arising from any breach of any of the provisions in clause 9 or elsewhere in this Bill of Lading and from any other cause whatsoever in connection with the Goods and/or the Merchant for which the Carrier is not responsible.
- c. The Merchant shall comply with all regulations and requirements of customs, ports and other authorities, and shall bear and pay all duties, taxes, fines, expenses or losses accrued or suffered by reason of any failure to so comply.
- d. The Merchant shall be liable for and shall indemnify the Carrier against all loss, damage, delay, fines, attorney fees and/or expenses arising from any illegal, incorrect or insufficient declaration, marking, numbering or addressing of the Goods.

6. SANCTIONS

- a. Merchant warrants throughout the duration of this Carriage that:
- (1) it is not the subject of any Sanctions or Sanction Lists or owned, in whole or in part, by any entity or person subject of same;
 - (2) it shall comply with all Sanctions; and
 - (3) the booking and carriage of the Cargo is not subject to any Sanctions.
- b. The Carrier shall have the right, but not the responsibility, at any time and without liability immediately to suspend or terminate all or part of the Carriage or to refuse to perform or suspend delivery if the Carrier becomes aware that the Merchant is or may be, in the Carrier's judgment, in breach of the above warranties (whether as a result of any action and/or omission) or that the Carriage or the Goods poses in the Carrier's judgment the potential for the imposition of Sanctions against the Carrier or the Merchant, whichever the Carrier in his absolute discretion considers most appropriate. The Carrier shall also be entitled to exercise any and all rights in Clause 11.
- c. Merchant shall indemnify, defend and hold harmless the Carrier against any and all damages, liabilities, penalties, fines, costs, losses, and expenses (including attorney fees) arising out of or related to any breach of the above warranties and/or the Carrier exercising its rights pursuant to this clause.

7. SPECIAL VENTILATION, REFRIGERATION OR HEATING

Special ventilation, refrigeration, power or heat will not be furnished to the Goods unless such special service is contracted for on the face of this Bill of Lading and extra freight is paid.

8. STEEL, OTHER METAL CARGO, LUMBER AND WOOD

It is agreed that steel, other metal cargo, lumber and wood with superficial rust, white rust, oxidation, wetness or any like condition is in apparent, external, good order and condition. If the Merchant requests in writing before delivery of such Goods to the Carrier and if a higher freight is paid, the Carrier will, after a special survey of the Goods, issue a Bill of Lading describing superficial rust, white rust, oxidation or wetness on such Goods.

9. DANGEROUS GOODS

No Goods which are or which may become of a dangerous, noxious, hazardous, flammable, or damaging nature (including radioactive material) or which are or may become able to cause loss or damage to any persons, property or the environment, and whether or not so listed in any official or unofficial, international or national codes, conventions, listings or tables shall be tendered to the Carrier for Carriage without marking, labelling, and packaging the dangerous Goods in accordance with law and regulations, and in a timely manner before delivering the Goods to the Carrier and informing the Carrier in writing of the dangerous nature or character of the Goods and furnishing the Carrier with instructions and documents reasonably necessary for proper handling, carriage and precautions to be taken. If the Merchant fails to do so, the Merchant will be liable to the Carrier for loss or damage resulting from such failure. If any such Goods are delivered to the Carrier without obtaining his consent, or in the opinion of the Carrier the Goods appear likely to become during the Carrier's period of responsibility an actual danger to persons, property, or the environment, the Carrier may decline to receive the Goods or unload, destroy or render the Goods harmless without liability to the Carrier or compensation to the Merchant and without prejudice to the Carrier's right to Freight. Nothing contained in this clause shall deprive the Carrier of any of his rights provided for elsewhere.

10. DELIVERY

The Carrier will deliver the Goods by one of the following means:

- a. Place the Goods at a place, reasonably safe and fit relative to the conditions, at the Port of Discharge or Place of Delivery, as indicated on the face of this Bill of Lading, and allow the Merchant up to 5 days to assume custody and control of the Goods unless the nature of the Goods or custom, law or regulation at the place of delivery necessitates a shorter time; or
- b. Relinquish exclusive custody and control of the Goods to a person entitled to the possession and control of the Goods; or
- c. Relinquish custody and control of the Goods to a port authority or other authority or other entity to whom custody and control is customarily relinquished at the Port of Discharge or Place of Delivery, indicated on the face of this Bill of Lading; or
- d. Any means provided by the applicable tariff.

The Carrier shall have no responsibility for or any liability in respect of Goods not collected within the time allowed by the relevant tariff, or, if no time is specified in the tariff, by the custom of the trade, or if no time is specified in the tariff or custom of the trade, within 5 days. The Carrier may remove such Goods from the Container or other packaging furnished by the Carrier, and/or place the Goods in a storage facility or other available place at the risk and expense of the Goods and the Merchant. That facility or place will act as an agent of the Merchant, not the Carrier. Demurrage will continue to be charged for the Container and other Carrier equipment until the Container or other equipment is returned to the Carrier. The demurrage will give rise to a lien over the Goods. Goods not collected within 30 days may be sold to exercise liens for freight, demurrage, storage, handling, and other charges.

Upon delivery, the contract of carriage will have been completed and the Carrier shall have no further responsibility for the Goods. If the Goods are on-carried, the Carrier will have no responsibility for the Goods, as provided in Clause 2.

11. LIBERTY CLAUSE

In any situation, whether or not existing or anticipated at or before the commencement of the Carriage, which in the judgment of the Carrier (including but not limited to the Master and any person charged with the carriage or safekeeping of the Goods) has given or is likely to give rise to danger, injury, loss or delay to the Carrier, any person, the Goods or any property, or has made or is likely to make it unsafe, impracticable, unlawful or against the interest of the Carrier or the Merchant to commence or continue the Carriage, to discharge the Goods at the Port of Discharge or to deliver the Goods at the Place of Delivery, the Carrier shall be entitled to exercise any or all of the below mentioned rights in this Article at any time, without being held liable for such action, yet being entitled to full freight on the Goods, at the risk and expense of the Merchant:

- (1) To deliver the Goods to the Merchant at a place selected by the Carrier, or dispose of the Goods in any manner as the Carrier considers advisable; and/or

- (2) To carry the Goods to the contracted Port of Discharge or Place of Delivery, whichever is applicable, by any route whether direct, agreed or customary, including any transshipment, or to any other port that the Carrier or the Master of the Vessel at its/his discretion may select and there discharge the Goods; and/or
- (3) To suspend the Carriage of the Goods and store them ashore or afloat as agent on behalf of the Merchant at the Merchant's risk and expense and to endeavour to forward the Goods, but always without any guarantee as to the maximum period of such suspension; and/or
- (4) To deliver the Goods, in whole or part, at any time, and place them at the Merchant's disposal at any place or port which the Carrier may deem safe and convenient, whereupon the responsibility of the Carrier in respect of such Goods shall cease but freight will be due; and/or
- (5) To fumigate or in any other way let the Goods undergo treatment in order to safeguard the Vessel or other cargo onboard the Vessel or to make the Vessel, Goods and/or other cargo comply with applicable import, export, customs and excise rules and regulations in any relevant port or area, at the time, risk and expense of the Merchant.

b. The situation of subpart (A) includes but is not limited to those caused by or arising from:

- (1) any war, war like operation, hostilities, riots, civil commotions or other disturbances;
- (2) closure of, obstacle in, or danger to any port, canal, lock or seaway;
- (3) congestion of port or at sea terminal or similar place;
- (4) bad weather, shallow water, ice, landslide, earthquake, or other natural disaster or effects or other obstacles to navigation or carriage;
- (5) quarantine, biosecurity, sanitary, or other similar regulations or restrictions;
- (6) actual or threatening epidemics or diseases;
- (7) strikes, lockouts, interdict, or other labour troubles, whether partial or general and whether or not involving employees of the Carrier or its Subcontractors;
- (8) shortage, absence or obstacles of labour or facilities for loading, discharge, delivery, or other handling of the Goods;
- (9) blockade, prohibition, Sanction(s) or restriction(s) on commerce or trading, and any other situation, whether existing, contemplated or doubtful, preventing the Vessel from reaching, entering, leaving any Port of Loading or Discharge safely without delay or detention, or having any impact whatsoever on the commercial operations of the Carrier.

c. If, after any action taken according to subparts A or B above, the Carrier makes arrangements to dispose, store, tranship, forward, fumigate, treat, re-package, for customs clearance or other authority approvals, electronic charging or towing the Goods, it shall do so only as agent of and at the risk and expense of the Merchant, without any liability in respect of such agency.

d. The Carrier shall have liberty to comply with any orders, directions or recommendations as to loading, departure, arrival, routes, port of call, stoppages, discharge, destination, delivery or otherwise howsoever given by any person acting or purporting to act with the authority of any government, international organisation or any department thereof, or by any committee or person having, or purporting to have, under the terms of the insurance on the Vessel, the right to give such orders, directions or recommendations. If any such orders, directions or recommendations are made with which the Carrier complies, the Carrier shall be entitled to exercise any or all of the rights in this Article at any time.

e. The discharge of the Goods and/or their delivery or other disposition pursuant to any provision of this Article shall constitute complete delivery and performance under this Bill of Lading and the Carrier shall be released from any further responsibility.

f. Actions which the Carrier takes under this Article shall be deemed to be included within the contractual carriage under this Bill of Lading and such actions or consequences resulting therefrom shall be considered neither a deviation nor a breach of the Carrier's obligation under this Bill of Lading. Should the Carrier be held liable in respect of such action, the Carrier shall be entitled to the full benefit of all limitations of liability, rights, and immunities contained in this Bill of Lading and other rules and laws incorporated herein.

g. Any additional freight or charges arising from the actions taken under this Article shall be for the account of the Merchant and the Carrier shall have a lien on the Goods for such additional freight or charges.

12. SUBCONTRACTORS OR PERFORMING PARTIES

The Carrier may arrange for Subcontractors or Performing Parties to perform, directly or indirectly, the whole or any part of the contract of carriage on any terms. The terms and conditions of this Bill of Lading, including all defences and limitations, is extended to all parties who participate in its performance. All defences, limitations, and the choice of law governing this Bill of Lading, whether applying with the force of law or through incorporation by reference into this Bill of Lading, shall extend to all parties that agree directly or indirectly with the Carrier to perform all or any part of the contract of carriage. These parties shall include, but shall not be limited to, the following entities: subcontracted carriers, participating land carriers, stevedores, terminal operators, watchmen, vessel operators, voyage charterers, time charterers, slot or space charterers, direct and indirect subcontractors, independent contractors, and every servant or agent of the Carrier or of a Subcontractor or Performing Party.

13. AGREEMENT TO CLAIM AGAINST NO ONE OTHER THAN THE CARRIER

The Merchant undertakes that no claim or allegation shall be made, whether by the Merchant or any other person who is or who may subsequently be interested in the Goods, against any person other than the Carrier. If such claim or allegation is made, the Merchant shall indemnify the Carrier and the person against whom such claim or allegation is made against the consequences of such claim or allegation.

14. FREIGHT AND OTHER CHARGES

Freight, whether it is pre-payable or collect as indicated on the face of this Bill of Lading or is to be paid according to agreed credit terms, is fully earned when the Goods are delivered to the Carrier, its agents or servants, without deduction or set-off, whether the Goods are lost or not lost. The Carrier has the right, but not the duty, to inspect Goods inside Containers or other Packages. If the Goods are not described correctly and as a result a lower and/or higher freight is charged, the Carrier will be entitled to the correct freight and all the costs of calculating and collecting it, including but not limited to attorney fees, and interest on both the amount due and the cost of collection. If the Carrier considers the packing insufficient and re-packages the Goods, the Merchant will pay for the cost of the repackaging and will pay the freight as computed for the re-packed Goods.

15. DELAY AND CONSEQUENTIAL DAMAGE

The Carrier shall in no circumstances whatsoever and howsoever arising be liable for any direct, indirect or consequential loss or damage arising from any cause whatsoever or for loss of profit, unless the Carrier has agreed in writing to be responsible for the specific damage that occurred. The Carrier does not undertake that the Goods or any documents relating thereto shall arrive or be available at any particular time or to meet any particular requirement of any license, permission, sale contract, or credit of the Merchant or any particular market and thus is not responsible for damages alleged to have been caused by delay. If, despite the foregoing provision, the Carrier is held liable for damages attributable to delay, such liability shall in no event exceed the freight paid for the delayed Goods.

16. DECK STOWAGE

The Carrier or vessel owner or operator, not the Merchant, has sole authority and responsibility to determine the stowage location of the Goods on vessels that carry the Goods. Goods stowed either by the Merchant or the Carrier in Containers or which are otherwise protected from weather, are likely to be stowed on deck. The Hague-Visby Rules or the United States Carriage of Goods by Sea Act ("COGSA") or the Australian Carriage of Goods by Sea Act or the New Zealand Maritime Transport Act 1994 or the Korean Commercial Act (Part V - Marine Commerce) or the Rotterdam Rules, whichever applies to this Bill of Lading, shall apply to such deck cargo as if it were stowed below deck. Goods that are customarily carried on deck may be carried on deck without notice to the Merchant and at the Goods' and the Merchant's risk. Goods not customarily carried on deck may be carried on deck at the risk of the Goods and the Merchant if the Bill of Lading is clause to note that the Goods are carried on deck at the risk of the Goods and/or the Merchant.

17. PARAMOUNT CLAUSE

Where compulsorily applicable, this contract is governed by COGSA. When COGSA is not compulsorily applicable, this contract shall be governed by the International Convention for the Unification of Certain Rules of Law relating to Bills of Lading signed at Brussels on 25 August 1924 ("the Hague Rules") as amended by the Protocol signed at Brussels on 23 February 1968 and amended by the 1979 SDR protocol ("the Hague-Visby Rules").

18. PACKAGE/CUSTOMARY FREIGHT UNIT LIMITATION

If the Merchant has not declared a higher value on the face of this Bill of Lading and paid extra freight for the higher declaration, the Carrier's liability is in any event limited to USD 500 per Package or for Goods not shipped in packages, per Customary Freight Unit. If the Hague-Visby Rules or the Korean Commercial Act (Part V - Marine Commerce) are held to govern this Bill of Lading, the Carrier's liability is limited to 666.67 SDR per Package or 2 SDR per kilogram of the goods lost or damaged, whichever is higher.

19. SEPARABILITY OF TERMS

The terms of this Bill of Lading shall be separable and if any provision of this Bill of Lading or any part of any provision is held to be invalid or unenforceable, such holding shall not affect the validity or enforceability of any other provision or part of this Bill of Lading.

20. NOTICE OF LOSS, TIME BAR

Unless notice of loss or damage and of the general nature of such loss or damage be given in writing to the Carrier or his agent at the Place of Delivery (or Port of Discharge if no Place of Delivery is named on the reverse hereof) before or at the time of removal of the Goods, such removal shall be prima facie evidence of the delivery by the Carrier of the Goods as described in this Bill of Lading. If notice of loss or damage is not given to the Carrier within three days of delivery, the failure to give such notice constitutes prima facie evidence that the loss or damage was not present at delivery. In any event, the Carrier shall be discharged from any liability whatsoever in respect of the Goods unless suit is brought within one year after their delivery or the date on which they should have been delivered.

21. APPLICATION OF THESE TERMS AND CONDITIONS

These Terms and Conditions (including all limitations and exclusions of liability) shall apply in any action against the Carrier for any loss or damage whatsoever and howsoever occurring (without restricting the generality of the foregoing, including delay, late delivery and/or delivery without surrender of this Bill of Lading) and whether the action be founded in contract, bailment or in tort and even if the loss, damage or delay arose as a result of unseaworthiness, negligence or fundamental breach of contract.

22. CHOICE OF LAW AND JURISDICTION

For shipments to or from the U.S. any dispute relating to this Bill of Lading shall be governed by U.S. law and the United States District Court for the Southern District of New York is to have exclusive jurisdiction to hear all disputes in respect thereto. In all other cases, this Bill of Lading shall be governed by and construed in accordance with English law and all disputes arising hereunder shall be determined by the English High Court of Justice in London to the exclusion of the jurisdiction of the courts of another country. Alternatively, and at the Carrier's sole option, the Carrier may commence proceedings against the Merchant at a competent court of a place of business of the Merchant.

23. LIEN

The Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable to the Carrier under this contract, including, but not limited to, freight payable according to agreed credit terms and irrespective of whether the pre-paid and/or collect box on the face of this Bill of Lading is filled out. The Carrier shall also have a lien for general average contributions to whomsoever due. The Carrier shall also have a lien against the Merchant on the Goods and any document relating thereto for all sums due by the Merchant to the Carrier under any other contract whether or not related to this Carriage. The Carrier may exercise its lien at any time and any place in its sole discretion, whether the contractual Carriage is completed or not. In any event any lien shall extend to cover the cost of recovering any sums due and for that purpose the Carrier shall have the right to sell the Goods by public auction or private treaty, without notice to the Merchant. The Carrier's lien shall survive delivery of the Goods.

24. GENERAL AVERAGE

General Average shall be adjusted, stated and settled according to York-Antwerp Rules 1994 in London.

Cargo's contribution to General Average shall be paid to the Carrier upon request, even when such average is the result of a fault, neglect or error of the Master, Pilot or Crew.

25. NEW JASON CLAUSE, BOTH-TO-BLAME COLLISION CLAUSE, HIMALAYA CLAUSE

The New Jason Clause, Both-to-Blame Collision Clause, The International Convention for the Unification of Certain Rules of Law with Respect to Collisions Between Vessels, Brussels 1910 (The 1910 Collision Convention), and the International Group of P&I Clubs/BIMCO Himalaya Clause for bills of lading and other contracts 2014 as adopted by BIMCO, all available from the Carrier or its agent, shall be deemed incorporated into and shall form part of this Bill of Lading.

Exhibit 4



BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C.

Docket No. 25-15

RECEIVED

July 29, 2025

Office of the Secretary
Federal Maritime Commission

Complainant:

Worldwide Nexus Logistics LLC
4200 NW 41 street, Suite 200
Doral, FL 33178
Email: jean.lopez@worldwidenexus.com
Phone: (732)379-2525

Respondent:

Wallenius Wilhelmsen
300 Interpace Pkwy, Ste A300
Parsippany, NJ 07054
Phone: +1 201 307 1300

Respondents' team:

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Stirling Leech - Partner – Clyde & Co LLP (Legal Counsel of Wallenius Wilhelmsen)
Email: Stirling.Leech@clydeco.com

COMPLAINT

I. PARTIES

1. Complainant, Worldwide Nexus Logistics, is a logistics provider organized and operating under the laws of Florida, USA, with a principal place of business at 4200 NW 41 Street, Suite 200 Doral, FL 33178.

2. Respondent, Wallenius Wilhelmsen, is a common carrier as defined by 46 U.S.C. § 40102(7), engaged in the ocean transportation of cargo for compensation and subject to the jurisdiction of the Federal Maritime Commission.

II. JURISDICTION

3. This Commission has subject matter jurisdiction pursuant to 46 U.S.C. §§ 41301 and 41302, and personal jurisdiction over Respondent under 46 U.S.C. § 41304.

4. The acts and omissions alleged herein occurred in connection with Respondent's operation as an ocean common carrier engaged in the transportation of cargo in the foreign commerce of the United States.

III. FACTUAL BACKGROUND

5. On or about December 19th, 2023, Complainant booked and shipped cargo consisting of roll-on/roll-off (RORO) units from Brunswick, GA and Galveston, TX, with a final destination San Antonio, Chile, via ocean transport contracted with Respondent. Contract number: NASA23-003

6. The cargo was routed to transit through Peruvian territory, in accordance with standard international shipping routes and manifest procedures.

7. Under the terms of the booking and standard maritime practice, Respondent was responsible for submitting all required in-transit documentation, including the Peruvian cargo manifest.

8. Respondent failed to submit the required in-transit cargo manifest, resulting in the seizure of the cargo by Peruvian customs authorities approximately 18 months ago.

9. As a direct result of Respondent's failure, the cargo was never released nor delivered to its final destination in Chile.

10. Despite repeated outreach and formal requests for explanation and remedy, Respondent has failed to provide any substantive response, compensation, or justification.

10A. Furthermore, Respondent initially acknowledged responsibility for the documentation failure and offered a settlement to compensate for the loss of cargo. However, Respondent subsequently and unilaterally withdrew its settlement offer without justification or explanation. This action, following Complainant's reliance on the offer and efforts to resolve the matter amicably, demonstrates further bad faith and constitutes an unreasonable business practice under 46 U.S.C. § 41102(c).

IV. CLAIM FOR RELIEF

11. Complainant alleges that the Respondent's failure to submit required manifest documentation, and its subsequent refusal to remedy the situation, constitutes an unjust and unreasonable practice in violation of 46 U.S.C. § 41102(c).

12. Complainant and its customers have incurred substantial financial harm, including loss of cargo, reputational damage, and commercial disruption. Until today we have only been advised via email by the carrier's attorney that the boats(3) have been confiscated by Peruvian authorities.

V. PRAYER FOR RELIEF

WHEREFORE, Complainant respectfully requests that the Federal Maritime Commission:

- A. Initiate an investigation into the acts and omissions of Respondent;
- B. Find that Respondent has violated 46 U.S.C. § 41102(c);
- C. Complainant respectfully requests that the Commission order reparations in the amount of \$240,902.90 representing the total losses incurred due to Respondent's violations of the Shipping Act, including but not limited to the value of the boats lost, shipping costs, and consequential damages.
- D. Provide such other and further relief as the Commission deems just and proper.

Respectfully submitted,

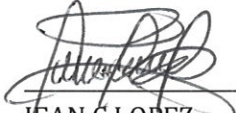
A handwritten signature in blue ink, appearing to read "Jean Lopez", with stylized flourishes.

Jean Lopez
Director - Member
Worldwide Nexus Logistics
June 25th, 2025

Verification

Pursuant to 46 CFR §502.112, I, JEAN C LOPEZ, being duly sworn, depose and state that I am the DIRECTOR/MEMBER of WORLDWIDE NEXUS LOGISTICS LLC., the complainant in this proceeding, that I have read the foregoing complaint, and that the facts stated therein are true and correct to the best of my knowledge, information, and belief.

Executed on this 21 day of July, 2025

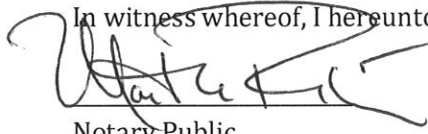

JEAN C LOPEZ

Notary Acknowledgment

State of Florida
County of Dade

On this 21 day of July, 2025 before me, the undersigned Notary Public, personally appeared [Your Full Name], known to me (or satisfactorily proven) to be the person whose name is subscribed to the foregoing complaint, and acknowledged that he/she executed the same for the purposes therein contained.

In witness whereof, I hereunto set my hand and official seal.


Notary Public

My Commission Expires



CERTIFICATE OF SERVICE

I certify that, on June 1, 2026, a true and correct copy of the foregoing Respondent's Appendix was filed via electronic mail with the Secretary of the Federal Maritime Commission and a copy was served via electronic mail on the following parties:

Jean C. Lopez

Jean.lopez@worldwidenexus.com

Managing Director and Owner, Worldwide Nexus Logistics, LLC

Dated: New York, New York
June 1, 2026

By: /s/ John R. Keough
John R. Keough